

DELIA GARZA vs. HOME DEPOT U.S.A., INC. A/K/A THE HOME DEPOT AND SHAWN HERBER

CAUSE NO. 25-cv-00598-OLG

CERTIFIED DEPOSITION OF THOMAS

1 THE REPORTER::

2 THE REPORTER: Good afternoon, Mr. Nunez.

3

4 EXAMINATION

5

6 BY :

7

8 Q. Good afternoon. How are you? I'm good. How are you?
9 Doing well.

10

11 THE REPORTER::

12 THE REPORTER: Good.

13

14 THE REPORTER::

15 THE REPORTER: Good afternoon. Good afternoon.

16

17 Q. Good afternoon.

18

19 THE REPORTER::

20 THE REPORTER: Hello,

21

22 THE REPORTER::

23 THE REPORTER: can you hear me okay?

24

25 THE REPORTER::

1 THE REPORTER: Yes ma'am. Okay, I can hear you great. Are you
2 Mr. Thomas?
3
4 THE REPORTER::
5 THE REPORTER: Ma'am.
6
7 THE REPORTER::
8 THE REPORTER: Mr. Thomas, I'm Mia, the court reporter.
9
10 THE REPORTER::
11 THE REPORTER: Could you tell me the address that you're at
12 today, sir?
13
14 A. 12135
15
16 A. Stoney Glen,
17
18 A. San Antonio, Texas
19
20 A. 78247.
21
22 THE REPORTER::
23 THE REPORTER: Thank
24
25 THE REPORTER::

1 THE REPORTER: you.

2

3 THE REPORTER::

4 THE REPORTER: And Ms. Sand, you're with Brothers,

5

6 THE REPORTER::

7 THE REPORTER: Alvarado?

8

9 THE REPORTER::

10 THE REPORTER: Yes.

11

12 THE REPORTER::

13 THE REPORTER: Okay, perfect.

14

15 THE REPORTER::

16 THE REPORTER: This is a federal

17

18 THE REPORTER::

19 THE REPORTER: case,

20

21 ::

22 : right? Yeah,

23

24 THE REPORTER::

25 THE REPORTER: so we have to agree

1

2 THE REPORTER::

3 THE REPORTER: to

4

5 THE REPORTER::

6 THE REPORTER: the parties need to agree about the custody of
7 the transcripts and wait to Mr. Nunez,

8

9 THE REPORTER::

10 THE REPORTER: Nunez, and since this is a federal case,

11

12 THE REPORTER::

13 THE REPORTER: we have to agree to the custody of the
14 transcripts,

15

16 THE REPORTER::

17 THE REPORTER: exhibits and other pertinent matters.

18

19 THE REPORTER::

20 THE REPORTER: If

21

22 THE REPORTER::

23 THE REPORTER: you would both stipulate that could be held by
24 the court reporter, then we can put that on the record.

25

1 THE REPORTER::

2 THE REPORTER: Of course, yes. Yes, fine with that. Okay,
3 thank you.

4

5 THE REPORTER::

6 THE REPORTER: Is everybody ready, or do we need a few
7 minutes?

8

9 A. I'm ready.

10

11 A. I'm prepared. Okay. Alright.

12

13 THE REPORTER::

14 THE REPORTER: Sam, are you recording? We got the recording
15 going?

16

17 THE REPORTER::

18 THE REPORTER: Yeah, I think we do. Okay.

19

20 THE REPORTER::

21 THE REPORTER: Okay. Today is 04/30/2026.

22

23 THE REPORTER::

24 THE REPORTER: The time is 01:31PM.

25

1 THE REPORTER::

2 THE REPORTER: This is the beginning of the deposition for
3 Mr. Heath Thomas.

4

5 THE REPORTER::

6 THE REPORTER: The United States District Court, Western
7 District of Texas San Antonio Division,

8

9 THE REPORTER::

10 THE REPORTER: Delia Garza, PLLC, versus Home Depot U. S. A.
11 Inc. A. K. A. The Home Depot and Shawn Herber defendants.

12

13 THE REPORTER::

14 THE REPORTER: Civil action number 25CV00598-OLG.

15

16 THE REPORTER::

17 THE REPORTER: This deposition is taken pursuant to the
18 federal rules. All parties have stipulated regarding custody

19

20 THE REPORTER::

21 THE REPORTER: of the transcript exhibits and any other
22 pertinent matters to be held by the court reporter.

23

24 THE REPORTER::

25 THE REPORTER: I am Mia Bardeau court reporter licensed in

1 Texas number 1200129.

2

3 THE REPORTER::

4 THE REPORTER: Counsel, will you please state your agreement
5 for this remote deposition and remote swearing witness by
6 stating your name, who you representing,

7

8 THE REPORTER::

9 THE REPORTER: the name of the city you're currently in
10 beginning with the notice of an attorney.

11

12 Q. Yep. Steven Nunez for plaintiff Delia Garza

13

14 Q. in San Antonio, Texas,

15

16 Q. Brain and Spine Personal Injury Lawyers of San Antonio.

17

18 ::

19 : Lucia Zahn for The Defendant Home Depot U. S. A. Inc.
20 Located in Houston, Texas

21

22 ::

23 : with Brothers, Alvarado, Piazza and Cozort.

24

25 THE REPORTER::

1 THE REPORTER: Thank you. Mister Thomas, would you please
2 raise your right hand, sir?

3

4 THE REPORTER::

5 THE REPORTER: Do you solemnly swear to tell the truth, the
6 whole truth and nothing but the truth so happy God.

7

8 THE REPORTER::

9 THE REPORTER: I'm sorry, sir. I didn't hear you.

10

11 THE REPORTER::

12 THE REPORTER: Oh, I still can't hear you. I don't know
13 something's wrong.

14

15 Q. You?

16

17 THE REPORTER::

18 THE REPORTER: Oh, now I can hear you. Thank you. Thank you,
19 sir. Okay.

20

21 THE REPORTER::

22 THE REPORTER: And you may proceed with the examination.

23

24 Q. Good afternoon. Can you please state your full name for

25 the record?

1

2 A. Heath Thomas.

3

4 Q. Okay. And can you please state your age and date of
5 birth?

6

7 A. Fifty seven,

8

9 A. May seventh nineteen sixty eight.

10

11 THE REPORTER::

12 THE REPORTER: Sir, you're cutting out the very first words
13 you say. If you could just turn, like, right toward the mic.
14 I'm sorry. I just have to get every word. Thank you.

15

16 A. It's fifty seven,

17

18 A. May seventh nineteen sixty eight.

19

20 Q. Okay. And do you understand we are here today to discuss
21 an incident that occurred on 03/24/2023

22

23 Q. at The Home Depot

24

25 Q. Alamo Heights location?

1

2 Q. Yes.

3

4 Q. Okay. And that incident occurred between you and
5 plaintiff Delia Garza. Correct?

6

7 A. That's my understanding.

8

9 Q. Okay.

10

11 Q. And you were working at The Home Depot at the Alamo
12 Heights location on 03/24/2023.

13

14 Q. Correct?

15

16 Q. Yes.

17

18 Q. Do you remember what time the incident occurred?

19

20 A. Not exactly.

21

22 Q. Okay.

23

24 Q. I'm having a little trouble hearing you.

25

1 Q. I don't do you wanna go off the record real quick?

2

3 Q. Sure.

4

5 THE REPORTER::

6 THE REPORTER: The time is 01:34PM

7

8 THE REPORTER::

9 THE REPORTER: and we're off the record.

10

11 THE REPORTER::

12 THE REPORTER: Sir, I think we can hear you if you are that
13 close to the mic. It's just that when you sit back in your
14 chair, I'm sorry, we can't hear you. It just must be
15 something with your microphone.

16

17 THE REPORTER::

18 THE REPORTER: Is that better? Yes, sir. But you just have to
19 stay that close to it or we can't hear anything you say.

20

21 THE REPORTER::

22 THE REPORTER: I'm sorry.

23

24 THE REPORTER::

25 THE REPORTER: Okay. Are we ready to go back on? Yes.

1

2 THE REPORTER::

3 THE REPORTER: Okay.

4

5 THE REPORTER::

6 THE REPORTER: The time is 01:35PM.

7

8 THE REPORTER::

9 THE REPORTER: This is a continuation of the deposition from
10 Heath Thomas, we are on the record. You may continue.

11

12 Q. And Mr. Thomas, are you currently employed at Home
13 Depot?

14

15 Q. No.

16

17 Q. Okay.

18

19 Q. Where do you currently work at?

20

21 A. Currently unemployed,

22

23 A. semi retired.

24

25 Q. Okay. Can you please let me know the dates of employment

1 at Home Depot?

2

3 Q. When did you start and then when did you leave?

4

5 A. I think I started in August

6

7 A. '21

8

9 A. and left

10

11 A. approximately August '23,

12

13 A. But I am not sure about those dates.

14

15 Q. Okay. At the time of the incident, what was your
16 position?

17

18 A. Steving associate.

19

20 Q. What associate?

21

22 A. Receiving associate.

23

24 Q. Receiving?

25

1 Q. Receiving associate.

2

3 Q. Receiving?

4

5 Q. Can you put on headphones or something? Because this is
6 a little too much.

7

8 A. Headphones.

9

10 THE REPORTER::

11 THE REPORTER: Mister Nunez, would you like me to go off the
12 record, sir? Please. We gotta figure this out. Okay. The
13 time is 01:36PM

14

15 THE REPORTER::

16 THE REPORTER: and we're off the record.

17

18 Q. I I just can't hear clearly,

19

20 Q. and this is gonna be a very long depo. And I'm gonna ask
21 you a lot of questions, so I just wanna make sure that

22

23 Q. we can I can hear you, and the court reporter can hear
24 you?

25

1 Q. So what can we do? Do you have another device, a
2 computer, something else?

3

4 A. My iPad, I don't have any headphones.

5

6 A. So this is what I have.

7

8 THE REPORTER::

9 THE REPORTER: It's it's like, you know, like when you just
10 started speaking then,

11

12 THE REPORTER::

13 THE REPORTER: the first three words we couldn't hear. I
14 don't know what it is.

15

16 A. I can't tell you what it is either. I'm as

17

18 THE REPORTER::

19 THE REPORTER: And right then, I I the iPad. Oh, yeah. See,
20 like you said, I can't. I saw your lips moving, but we did
21 not hear it.

22

23 THE REPORTER::

24 THE REPORTER: And then something about iPad, we did not hear

25 it.

1

2 ::

3 : Heath, did you say that are you on your phone right now?

4 No. I'm on my iPad. Oh, you're on your iPad?

5

6 A. I spoke to you on earlier.

7

8 ::

9 : Okay.

10

11 ::

12 : Do you wanna try, like, logging out and maybe logging back

13 in and seeing if that works

14

15 ::

16 : for the audio?

17

18 A. If you'd like me to.

19

20 ::

21 : Let's try that since we're having trouble hearing

22 essentially every sentence that you say. The first, like,

23 word is,

24

25 ::

1 : uh, we can see you say it, but we can't really hear you.

2

3 THE REPORTER::

4 THE REPORTER: I was saying

5

6 THE REPORTER::

7 THE REPORTER: just like you said okay.

8

9 THE REPORTER::

10 THE REPORTER: Oh my god.

11

12 THE REPORTER::

13 THE REPORTER: I guess even the telephone would be better

14 than that.

15

16 ::

17 : Or maybe we can enlist

18

19 ::

20 : Sam's help and

21

22 ::

23 : see if he has any, like, audio issues that that you can

24 see on his end when he's logging back on. K.

1 THE REPORTER::

2 THE REPORTER: Sam, are you there?

3

4 THE REPORTER::

5 THE REPORTER: Okay. I'm gonna admit him.

6

7 Q. Okay.

8

9 THE REPORTER::

10 THE REPORTER: Can you say something, mister Thomas?

11

12 A. Is any better?

13

14 THE REPORTER::

15 THE REPORTER: I heard everything you said.

16

17 Q. You Sounds better. Yeah. Can you count to 10?

18

19 A. Two,

20

21 A. three. Still

22

23 THE REPORTER::

24 THE REPORTER: did it.

25

1 THE REPORTER::

2 THE REPORTER: Get the one.

3

4 ::

5 : Yeah. The one didn't come out, unfortunately.

6

7 Q. I

8

9 THE REPORTER::

10 THE REPORTER: I think it's his I I don't think

11

12 THE REPORTER::

13 THE REPORTER: it's not like the Zoom. I think it's the
14 problem is with

15

16 THE REPORTER::

17 THE REPORTER: the microphone on his iPad. So maybe would you
18 wanna try your phone?

19

20 ::

21 : I I think there was

22

23 ::

24 : I think there's something that I saw in another deposition

25 where, like, if you click little arrow by the audio

1

2 ::

3 : and there was, like, a switch to phone audio, maybe that

4 would work. Or, essentially, you're using your

5

6 ::

7 : your device right now to see,

8

9 THE REPORTER::

10 THE REPORTER: but connect with the phone audio. So on the

11 right side of audio, there's a little arrow. And if you

12 click on it, it'll bring up a menu.

13

14 THE REPORTER::

15 THE REPORTER: And then it'll say

16

17 THE REPORTER::

18 THE REPORTER: switch to phone audio.

19

20 THE REPORTER::

21 THE REPORTER: You might try that, that's what she's saying.

22 Did you find it, sir? Didn't have that

23

24 THE REPORTER::

25 THE REPORTER: available. It

1

2 THE REPORTER::

3 THE REPORTER: doesn't on the where it says audio, do you see
4 a little arrow pointing up on the right side of it at the
5 bottom? With the audio settings.

6

7 A. K.

8

9 A. And all I have are microphone

10

11 Q. Modes.

12

13 A. Mhmm. Noise removal default.

14

15 A. Original sound for musicians.

16

17 ::

18 : Oh, okay. Wow.

19

20 Q. Well, well,

21

22 ::

23 : uh, you wanna try you wanna try your your cell phone to to
24 try,

25

1 ::

2 : uh, going through that?

3

4 THE REPORTER::

5 THE REPORTER: I'm sorry, sir. We didn't hear what you said.

6

7 ::

8 : And if you would like to actually use your

9

10 ::

11 : your iPad,

12

13 ::

14 : I think you can just mute your iPad and just call in

15 through the

16

17 ::

18 : through your phone and use that as the audio?

19

20 ::

21 : I think we can you can join, like, two devices. Right?

22

23 THE REPORTER::

24 THE REPORTER: Oh, yeah. That's a good idea, miss San.

1 ::

2 : Just throwing out options here. Yeah.

3

4 A. I'm to adjust the settings.

5

6 A. Let me grab my phone. Okay.

7

8 ::

9 : Sounded better there actually.

10

11 THE REPORTER::

12 THE REPORTER: Yeah, he does at times. You just never know.

13

14 THE REPORTER::

15 THE REPORTER: Goes

16

17 THE REPORTER::

18 THE REPORTER: on and off.

19

20 THE REPORTER::

21 THE REPORTER: Might be a setting in his iPad that says

22

23 THE REPORTER::

24 THE REPORTER: it's

1 THE REPORTER::

2 THE REPORTER: triggers that whenever you start talking,

3

4 THE REPORTER::

5 THE REPORTER: something like that, but I don't know how we

6 would find that.

7

8 Q. Okay. That's good.

9

10 THE REPORTER::

11 THE REPORTER: There we go.

12

13 THE REPORTER::

14 THE REPORTER: Okay.

15

16 THE REPORTER::

17 THE REPORTER: We've got your iPhone here, mister Thomas.

18

19 THE REPORTER::

20 THE REPORTER: And it is

21

22 THE REPORTER::

23 THE REPORTER: muted, think.

24

25 THE REPORTER::

1 THE REPORTER: You have to unmute it.

2

3 THE REPORTER::

4 THE REPORTER: Okay.

5

6 THE REPORTER::

7 THE REPORTER: Is that better? Yes, sir. Can you count it in?

8

9 A. 12345,

10

11 THE REPORTER::

12 THE REPORTER: Okay.

13

14 THE REPORTER::

15 THE REPORTER: That's much better. Problem is we have an echo

16 and the reason is because your iPad

17

18 THE REPORTER::

19 THE REPORTER: is, if you can cut the audio on your iPad, I

20 think we'll be good to go.

21

22 A. Is that better? Yes, sir.

23

24 Q. Count 5.

1 A. 12345.

2

3 THE REPORTER::

4 THE REPORTER: Oh, that's very good. Is everybody good with
5 that?

6

7 THE REPORTER::

8 THE REPORTER: Okay,

9

10 THE REPORTER::

11 THE REPORTER: We're ready to go back on?

12

13 Q. Yes,

14

15 Q. I am just finishing an email. Okay. All right. We're
16 good.

17

18 THE REPORTER::

19 THE REPORTER: All right. The time is 01:44PM.

20

21 THE REPORTER::

22 THE REPORTER: This is a continuation of the deposition for
23 mister Heath Thomas,

24

25 THE REPORTER::

1 THE REPORTER: and we are on the record.

2

3 Q. Alright. Mister Thomas, we just came back from a short
4 break, and we were before the break, we were talking
5 about your employment at Home Depot.

6

7 Q. You stated that you think you started around August

8

9 Q. 21

10

11 Q. to August 23.

12

13 Q. And my next question was,

14

15 Q. what was your position

16

17 Q. at Home Depot?

18

19 A. I stated I was started around twenty twenty one August,

20

21 A. not the twenty first

22

23 A. and I ended it

24

25 A. around August

1

2 A. 2023.

3

4 A. And I was initially

5

6 A. a part time employee

7

8 A. and then I moved into receiving.

9

10 Q. Okay.

11

12 Q. Alright. And at the time of the incident,

13

14 Q. were you

15

16 Q. was your position

17

18 Q. a receiver?

19

20 A. I was a receiving associate.

21

22 Q. That's the title that Home Depot gives it. Okay. And
23 what are your job duties as a receiving associate?

24

25 A. Receiving is where all of the product comes in or goes

1 out of the store,

2

3 A. for lack of a better word, wholesale.

4

5 Q. And part of your job duties is moving store merchandise
6 throughout the store, correct?

7

8 A. That's a general yes.

9

10 Q. Okay.

11

12 Q. What about as a part time employee? What were your job
13 duties? Can you please try to describe them in as much
14 detail as possible?

15

16 A. As a part time employee,

17

18 A. I went in overnight

19

20 A. and I would

21

22 A. evaluate

23

24 A. certain

25

1 A. bays on the retail sales floor,

2

3 A. decide what needed to be restocked,

4

5 A. take the merchandise that needed to be restocked from
6 the overhead and place it in the appropriate bins,

7

8 A. also to reset

9

10 A. the overhead bins appropriately.

11

12 Q. Okay.

13

14 A. And

15

16 Q. then why did you leave Home Depot?

17

18 A. I left Home Depot because I had

19

20 A. a colleague who worked in receiving

21

22 A. that

23

24 A. management refused to address

25

1 A. some of the shortcomings that he had

2

3 A. that wasn't affecting

4

5 A. me and the other receiving associate negatively.

6

7 Q. Okay. At the time of the incident, who was your

8

9 Q. supervisor?

10

11 A. Do you mean

12

13 A. my direct supervisor

14

15 A. or who was supervising at the time?

16

17 Q. Correct. Your direct supervisor

18

19 Q. at the time of the incident. Who do you report to
20 directly?

21

22 A. That would be the second in command of the store. At the
23 time, it was an individual named Brad.

24

25 A. I don't remember his last name.

1

2 Q. Okay. Was he there at the time of the incident?

3

4 A. No.

5

6 Q. Okay.

7

8 Q. Alright. Who was your direct supervisor at the time of
9 the incident?

10

11 A. He would be my direct supervisor at the time of the
12 incident.

13

14 A. The hierarchy

15

16 Q. on a daily basis is just is different than most other
17 places. What about who who was there? Who was there at
18 the We had a

19

20 A. managing direct managing supervisor or a the day

21

22 A. the manager on duty is what they called him. So that was
23 Tom.

24

25 Q. Tom Rodriguez?

1

2 A. I don't remember his last name.

3

4 Q. Okay. Can you please describe in as much detail

5

6 Q. all of your job duties as receiving associate?

7

8 A. A general receiving associate is

9

10 A. there to unload merchandise that is brought in

11

12 A. in bulk through either tractor trailers, flatbed
13 trailers.

14

15 A. It can be UPS,

16

17 A. it can be FedEx.

18

19 A. It's all manner of bulk items that go into the store.
20 So, building materials,

21

22 A. gardening materials,

23

24 A. lumber,

25

1 A. you unload the lumber in the outside and stack it

2

3 A. in the pre staging area outside.

4

5 A. You're required to learn how to use at least two of

6

7 A. six lift machines that

8

9 A. the store uses.

10

11 A. And

12

13 A. there's individual duties depending on which shift you
14 work.

15

16 Q. Okay.

17

18 Q. Alright.

19

20 Q. And did you speak to anybody in preparation for this
21 deposition

22

23 Q. besides

24

25 Q. besides miss San's

1

2 Q. office?

3

4 A. Other than to let someone know that I'm not available,

5

6 A. but not for preparation.

7

8 Q. Did you review anything in preparation for this
9 deposition,

10

11 Q. like

12

13 Q. videos,

14

15 Q. like documents,

16

17 Q. reports,

18

19 Q. anything like that?

20

21 A. Yes.

22

23 Q. Can you please let me know what you reviewed?

24

25 A. Documents from Home Depot,

1

2 A. a video

3

4 A. from Home Depot.

5

6 Q. Yep. That's it.

7

8 Q. Okay. What documents from Home Depot did you review?

9

10 A. An incident report,

11

12 A. some policy

13

14 A. documents.

15

16 Q. Okay. What did the policy documents,

17

18 Q. um, describe in them? What did they include?

19

20 A. They included the definition that that Home Depot uses

21 for

22

23 A. the use of carts.

24

25 Q. Did it describe

1

2 Q. specific

3

4 Q. type of car and what they're used for? Is that what
5 you're saying?

6

7 A. They gave a general description of the different carts
8 that are used

9

10 A. and they gave

11

12 A. an idea of what they would be used for.

13

14 Q. Okay.

15

16 Q. All right. And so

17

18 Q. before

19

20 Q. Home Depot, where did you work at?

21

22 A. Uh, I worked at Homeland Security.

23

24 Q. What was your job title?

25

1 A. Criminal investigator.

2

3 Q. You said you were an investigator?

4

5 Q. Yes. Okay.

6

7 Q. Can you tell me the dates you worked at Homeland
8 Security?

9

10 A. Uh, from its inception in 2003

11

12 A. till

13

14 A. August,

15

16 A. approximately August

17

18 A. 2012.

19

20 Q. Then what did you work at after that?

21

22 A. I did one month at Amazon

23

24 A. as a seasonal

25

1 A. associate.

2

3 Q. So did you drive the trucks at Amazon and deliver the
4 merchandise?

5

6 A. No. I did

7

8 A. a job that involved auditing

9

10 A. bins of

11

12 A. items.

13

14 Q. Okay. So Department of Homeland Security, you worked
15 there from 2003 to 2012,

16

17 Q. and then you did seasonal work at Amazon after that. And
18 then what did you work after that?

19

20 A. I didn't.

21

22 Q. Okay. So you did not work again until

23

24 Q. around

25

1 Q. August 2021 at Home Depot?

2

3 A. Approximately.

4

5 Q. Yes. Okay. And then

6

7 Q. since

8

9 Q. leaving Home Depot in August '23,

10

11 Q. you have not been employed?

12

13 A. I've worked as a ten ninety nine employee

14

15 A. at, uh, helping

16

17 A. a friend put on, uh, trail races.

18

19 Q. Trail races, you said? Yes. Ultramarathons.

20

21 Q. Okay.

22

23 Q. At the time of the incident, were you wearing glasses?

24

25 A. I don't remember.

1

2 Q. Did you have a prescription for glasses at the time of
3 the incident?

4

5 A. I believe so. Okay.

6

7 Q. Do you know if you were wearing contacts or corrective
8 lenses at the time of the incident?

9

10 A. No.

11

12 Q. Okay. Is there a reason why you would not be wearing
13 glasses at the time of the incident?

14

15 A. Because I don't need them to see all the time.

16

17 Q. Okay.

18

19 Q. At the time of the incident, do you know what your
20 vision was at twenty twenty, 2015?

21

22 Q. I don't recall. Okay. Before the incident, when was the
23 last time you

24

25 Q. got you you saw an optometrist?

1

2 A. I don't remember.

3

4 Q. How

5

6 Q. often do you get your eyes checked?

7

8 A. Well,

9

10 A. that's when the VA lets me know that I can get my eyes
11 checked is when I get my eyes checked. Okay. And were
12 you in the military?

13

14 A. Yes. Okay.

15

16 Q. From what year to what year?

17

18 A. 1986

19

20 A. to 1992.

21

22 Q. Okay.

23

24 Q. Alright.

25

1 Q. Did you have a cell phone at the time of the incident?

2

3 A. Yes.

4

5 Q. At the time of the incident, were you on your cell
6 phone? No.

7

8 Q. Okay.

9

10 Q. Where was your cell phone at the time of the incident?

11

12 A. I don't recall.

13

14 Q. Okay. When was the last time you used your cell phone
15 before the incident?

16

17 A. I don't recall because I didn't use my personal cell
18 phone mostly during the day.

19

20 Q. Okay. Do you know when the next time you used your cell
21 phone after the incident?

22

23 A. No.

24

25 Q. At the time of the incident, uh, what was your cell

1 phone number,

2

3 Q. carrier,

4

5 Q. and account?

6

7 A. I believe the number is 2106206642.

8

9 A. As far as the carrier and

10

11 A. I I don't remember

12

13 A. because it's not the same as what I have now

14

15 A. and I wouldn't be able to tell you what the account was.

16

17 Q. Would it be under your name, the account?

18

19 Q. Thomas? Okay.

20

21 Q. Did you, uh, review any photos in preparation for this
22 deposition?

23

24 A. No.

25

1 Q. Okay. And you said that you reviewed a video. What did
2 that video show?
3
4 A. It was a video about the use of carts at the store. It's
5 a
6
7 A. yearly video that Home Depot puts out.
8
9 Q. Okay. So you reviewed that video. How many times had you
10 seen that video before this deposition?
11
12 A. I couldn't tell you that. More than once.
13
14 Q. Was it more than five?
15
16 A. I don't remember.
17
18 A. Okay.
19
20 Q. When did you review the video?
21
22 A. Recently.
23
24 Q. Today,

1 Q. yesterday?

2

3 A. Today.

4

5 Q. Okay.

6

7 Q. And then you have reviewed that video at least every
8 year whenever you worked at Home Depot?

9

10 A. I don't remember if it was every year.

11

12 Q. I do remember seeing it though. Okay. Do you remember
13 seeing it during orientation

14

15 Q. or just randomly they showed it to you?

16

17 A. I couldn't tell you, but I could tell you it was part of
18 the safety,

19

20 A. the monthly safety program,

21

22 A. but it wasn't something you saw every month. Okay.

23

24 Q. Okay. And at the time of the incident, you were using a
25 sheet cart, correct?

1

2 Q. A tabletop cart. Yes. Okay. So that's what they're
3 called tabletop carts? That's one of the terms they're
4 used, Can you tell me all the terms that

5

6 Q. Home Depot uses for those types of cards?

7

8 A. Uh, I couldn't tell you all the terms.

9

10 Q. Okay. But your understanding is a sheet cart and a top
11 cart

12

13 Q. or tabletop cart is the same type of cart you were
14 moving merchandise

15

16 Q. at the time of the incident that you were using?

17

18 A. Yes.

19

20 Q. Okay.

21

22 Q. Alright. So can we agree now that

23

24 Q. whenever I say cart,

25

1 Q. I'm talking about the sheet cart you were using to move
2 items

3

4 Q. at the time of the incident?

5

6 A. If we both understand it's the what I call a tabletop?

7

8 A. Yes.

9

10 Q. Okay. Unless I describe something otherwise,

11

12 Q. like a flatbed car.

13

14 A. Okay.

15

16 Q. Okay. Is that okay. Just wanna agree on that. Let me go
17 ahead and just show you a photo just so we can both be
18 on the same page. Okay?

19

20 Q. I'm just going to go ahead and mark this as plaintiff's
21 exhibit one.

22

23 Q. Are you able to see this photo here?

24

25 A. Yes.

1

2 Q. Okay. And this is a tabletop cart. Correct? Yes. Also
3 known as a sheet cart?

4

5 Q. Yes. Okay. And you were using this cart to move
6 merchandise

7

8 Q. at the time of the incident. Correct? Yes. Okay. And you
9 were

10

11 Q. moving

12

13 Q. pallets of windows. Is that correct?

14

15 A. A pallet.

16

17 Q. A pallet. So it was one pallet of windows?

18

19 Q. Yes. Okay. And how many windows were on this cart at the
20 time of the incident?

21

22 A. Approximately 20.

23

24 Q. Okay.

25

1 A. So

2

3 Q. do you know how high

4

5 Q. the merchandise went up to?

6

7 Q. Do you know if it went up to your shoulders or to your
8 head whenever you were moving this around?

9

10 A. Uh, it was approximately

11

12 A. just above my head.

13

14 Q. Okay.

15

16 Q. So at the time of the incident, were you pushing it
17 forward, or were you pulling it forward?

18

19 Q. I was pushing it. Okay. So at the time of the incident,
20 could you see directly in front of you whenever you were
21 pushing it forward?

22

23 A. I could see by looking around the sides.

24

25 Q. Okay. But you could not look directly forward as you

1 were pushing it because the

2

3 Q. windows

4

5 Q. were above your head. Correct?

6

7 ::

8 : Correct. Actually, I'm vague and ambiguous.

9

10 Q. So you would agree with me that when pushing the

11

12 Q. windows

13

14 Q. at the time of the incident, you could not see directly

15 in front of you? Objection form,

16

17 ::

18 : big ambiguous.

19

20 Q. You you can answer.

21

22 Q. Repeat that again. Yeah. So you can agree with me that

23 at the time of the incident, whenever pushing

24

25 Q. the merchandise and cart

1

2 Q. at the time of the incident, you could not see directly
3 in front of you because the windows were blocking your
4 point of view. --

5

6 ::

7 : Objection. Form, vague and ambiguous.

8

9 A. -- Does this mean I can answer or I mean Yes.

10

11 A. I could see around the sides of the windows.

12

13 A. I could not see directly through the windows.

14

15 Q. Okay.

16

17 Q. Would you agree with me that when pushing a cart, you
18 should pay attention to your surroundings?

19

20 Q. I was paying attention to my surroundings by looking
21 around the sides of the cart. Okay. I'm asking you some
22 questions about whether you agree or disagree. Okay?
23 Just let me know if you agree or disagree. So I'm gonna
24 ask this question. So when pushing a cart, you should

25 pay attention to your surroundings. Do you agree with

1 that?

2

3 A. When pushing a cart, I look around and I see them, uh,
4 over both sides of the cart, right side and the left
5 side.

6

7 Q. Okay.

8

9 Q. So I'm talking about general rules when pushing a cart.
10 Do you understand that? I understood you. Okay. So
11 please listen to my question very closely.

12

13 Q. Do you agree when pushing a cart, you should pay
14 attention to your surroundings? Do you agree with that?
15 I pay attention to my surroundings when pushing a cart.
16 Okay. Do you agree when

17

18 Q. pushing or moving a cart, you have to watch where you're
19 going? I watch where I'm going when I'm pushing a cart.

20

21 Q. Would

22

23 Q. you agree with me if you're not paying attention,

24

25 Q. you can hit somebody?

1

2 Q. Objection. --

3

4 ::

5 : Calls for speculation.

6

7 A. -- I

8

9 A. don't know.

10

11 Q. Okay.

12

13 Q. Do you agree with me that somebody can get hurt

14

15 Q. if you're not paying attention when pushing a cart
16 around the store?

17

18 A. That would be guessing. Big

19

20 ::

21 : and ambiguous calls for speculation.

22

23 Q. So

24

25 Q. you can't agree or disagree with that?

1

2 A. You're asking me to answer something that I have no I
3 can't predict.

4

5 Q. Have you ever seen somebody get hurt whenever they're
6 struck by a cart with merchandise

7

8 A. on You've

9

10 A. never seen that before? I've never seen anyone get hurt.

11

12 Q. Have you ever seen somebody get hit?

13

14 A. I've seen someone get bumped

15

16 A. by a cart.

17

18 Q. Okay.

19

20 Q. So you've seen somebody get hit with a cart with
21 merchandise, correct?

22

23 A. Bumped.

24

25 Q. Okay. So you've seen somebody get bumped with a cart

1 with merchandise, correct?

2

3 A. Yes.

4

5 Q. Okay. And you agree that you should control the speed of
6 your cart that you are moving around the store. Would
7 you agree with that?

8

9 A. I agree you should move the cart carefully.

10

11 Q. Okay. And you agree if you do not move it carefully,

12

13 Q. you can hit somebody. Correct?

14

15 ::

16 : Big and bigos.

17

18 A. You're asking me to speculate.

19

20 Q. I'm asking you a question that if you do not control the
21 speed of a cart,

22

23 Q. you agree that you can hit somebody, right?

24

25 A. You're asking me to guess what

1

2 A. can happen.

3

4 Q. Are you refusing to answer my question?

5

6 A. I

7

8 A. don't understand your question. I've already answered
9 it. I don't know.

10

11 Q. You agree that when moving merchandise on a cart, you
12 should maintain a safe distance between the cart and
13 somebody else, correct? --

14

15 ::

16 : Objection,

17

18 ::

19 : vague and ambiguous.

20

21 A. -- When I move a cart, I pay attention to where I'm
22 going.

23

24 A. I look around

25

1 A. and I do my best to

2

3 A. see where I'm going.

4

5 Q. I'm gonna object who's non responsive. I'm gonna ask the
6 question again until it's answered.

7

8 Q. You agree that when moving merchandise

9

10 Q. on a cart, you should maintain a safe distance between
11 the cart and customers. Correct?

12

13 ::

14 : I

15

16 A. don't know.

17

18 Q. Okay. So you do not know if you should maintain the safe
19 distance between a cart

20

21 Q. and a customer? --

22

23 ::

24 : Objection. Vague and ambiguous.

25

1 A. -- I've maintained a safe distance between myself and a
2 customer.

3

4 Q. Okay. My question is a little bit different.

5

6 Q. My question is,

7

8 Q. do you maintain a safe distance between a cart and a
9 customer? --

10

11 ::

12 : Objection. Vague and ambiguous.

13

14 A. -- I

15

16 A. maintain a safe distance whenever possible,

17

18 A. and I can see where I'm going.

19

20 Q. Okay, so I'm an objective, it's nonresponsive.

21

22 Q. My question's a little bit different. Please answer my
23 question.

24

25 Q. You are in front of a jury.

1

2 Q. Do you agree

3

4 Q. that when moving merchandise on card, you should
5 maintain a safe distance between the card and a
6 customer? --

7

8 ::

9 : Objection,

10

11 ::

12 : vague and ambiguous.

13

14 A. -- Sorry, counselor. I don't understand what you're
15 trying to get out of me. I told you,

16

17 A. I, when I move a cart,

18

19 A. I do it safely.

20

21 A. I look around.

22

23 A. I see where I I see where I'm going.

24

25 A. And

1

2 A. I stay out. I try to be as safe as possible.

3

4 Q. I'm gonna object who's not responsive.

5

6 Q. What what don't you understand about my question?

7

8 A. You're asking me to to agree with you on something that
9 is

10

11 A. you want me to guess at what you're saying?

12

13 Q. Is either you agree with it or you disagree. Don't you
14 agree that you should maintain a safe distance between a
15 cart and a customer? I've already told you that I
16 maintain a safe distance.

17

18 A. You agree? I told you what I did. So you agree?

19

20 A. Told you what I did.

21

22 Q. You're not answering my question, sir. Not answering it
23 the way you want me to. No, you're not answering my
24 questions. You're being non responsive.

25

1 Q. And I'm gonna move on to this next question.

2

3 Q. And again, you're in front of a jury.

4

5 Q. You agree you must keep a table card under control at
6 all times. Do you agree with that? --

7

8 ::

9 : Objection, vague and ambiguous.

10

11 A. -- When I've moved the table card, I've kept it under
12 control every time I've moved it.

13

14 Q. Okay. So you kept a cart under control at the time of
15 the incident even though you bumped somebody?

16

17 ::

18 : Kept the vague and ambiguous.

19

20 A. I kept the cart under control.

21

22 A. As far as bumping into somebody, I do not know if I
23 bumped into anybody.

24

25 Q. Alright. Do you agree that if you did bump into somebody

1 that you did not control the cart? --

2

3 ::

4 : Objection. Vague and ambiguous calls for speculation.

5

6 A. -- No.

7

8 A. I don't agree.

9

10 Q. And why is that?

11

12 A. Because

13

14 A. I don't, if I didn't see somebody and they were in front
15 of me

16

17 A. or they jumped out in front of me and they, I felt a
18 bump, I don't know if I hit anything other than
19 something bumped into the cart.

20

21 Q. Do you agree that when using a sheet cart, you should
22 always partner up with an associate?

23

24 A. That's not part of the protocol.

25

1 Q. I'm going to object as non responsive. Do you agree that
2 when using a Sheet cart, when moving a sheet cart, you
3 should always partner up with an associate?
4
5 A. That's not part of what we do at Home Depot and that's
6 not a
7
8 A. requirement.
9
10 Q. I'm gonna object. He's not responsive.
11
12 Q. Do
13
14 Q. you agree that when
15
16 Q. using a sheet card, you should always partner up with an
17 associate?
18
19 A. I've already answered you. It's not it's not part of the
20 protocol. It's not what we do there.
21
22 Q. What do you mean that's not what we do there?
23
24 A. It's not practical.

1 A. And it's not it's not required. I can see around the
2 cart.

3

4 Q. Okay. I'm gonna go ahead and mark this video as
5 plaintiff's exhibit number two.

6

7 Q. I'm going to go to minute three and fifteen seconds.

8

9 Q. I'm gonna go ahead and play this and ask you some
10 questions.

11

12 A. Always partner with another associate when loading and
13 moving a sheet goods cart.

14

15 Q. Did you hear what that said? Yes.

16

17 Q. What did it say?

18

19 A. Always partner with another associate when loading or
20 moving a sheet rock cart.

21

22 Q. Okay.

23

24 Q. You were moving a sheet cart at the time of the

25 incident, correct? Yes.

1

2 Q. Okay.

3

4 Q. Did you partner up with an associate when moving the
5 sheet cart at the time of the incident? I did not.

6

7 Q. Okay. Did you violate Home Depot policy whenever you
8 were moving the sheet cart at the time of the incident?

9

10 A. No.

11

12 A. Not to my understanding.

13

14 Q. Then why do you say no?

15

16 A. The written policy says nothing about doing this.

17

18 Q. Did you follow your training

19

20 Q. whenever you were moving the Sheet Cart at the time of
21 the incident?

22

23 A. Yes, I followed the training I received in store.

24

25 Q. How did you No, I'm talking about this video. You

1 watched this video as part of training, correct?

2

3 A. Yes.

4

5 Q. Okay, this is a training video, correct?

6

7 Q. Yes.

8

9 Q. It says to use a partner when moving

10

11 Q. merchandise on a cart,

12

13 Q. correct? That's what it says. You did not use a partner
14 when moving merchandise on a sheet cart, correct?

15

16 A. Yes.

17

18 A. Okay. And so

19

20 Q. you didn't have somebody with you to move merchandise

21

22 Q. at the time of the incident.

23

24 Q. So my question is, did you follow the training in this

25

video?

1

2 A. I followed the training I received.

3

4 Q. Did you I'm gonna object. It's non responsive. Did you
5 follow the training in this video?

6

7 A. I followed the training I received in the store. I'm
8 gonna object. It's nonresponsive.

9

10 Q. Did you follow the training in this video?

11

12 A. I followed what I was taught in store, and I followed
13 what the written document was. I'm gonna object. It's
14 nonresponsive.

15

16 Q. My question is a little bit different, We're and gonna
17 go all day if I have to. I have six hours with you. Did
18 you follow the training in this video?

19

20 A. I did not do what the true video said.

21

22 Q. Why should you have a partner

23

24 Q. when moving merchandise

25

1 Q. on a sheet card?

2

3 ::

4 : Action calls for speculation.

5

6 Q. Is there a reason? --

7

8 ::

9 : Objection calls for speculation.

10

11 Q. -- You can answer the question.

12

13 A. Don't know.

14

15 Q. Okay. So you worked there for two years. Correct?

16

17 A. Approximately.

18

19 Q. Okay. And you don't know why you should partner up with

20 an associate when moving merchandise on a sheet cart? --

21

22 ::

23 : Objection. Calls for speculation.

24

25 Q. -- Okay. Do you know what type of merchandise,

1

2 Q. uh, you were, uh, moving what the exact merchandise is
3 called?

4

5 A. I couldn't give you the exact descriptor. No.

6

7 Q. Were you trained on loading a sheet cart?

8

9 A. Yes.

10

11 Q. Can you please tell me about that training?

12

13 A. Well, it's specific to the type of materials.

14

15 Q. Were you trained on overloading

16

17 Q. on what is considered overloading a Sheet Cart?

18

19 A. Yes.

20

21 Q. Okay. And what is considered overloading

22

23 Q. on a Sheet Cart?

24

25 A. Well, again, that's dependent on the materials.

1

2 A. It's

3

4 A. dependent on what material you're putting on it. Most

5

6 A. of it, it has to do with the placement of the material
7 on the cart itself.

8

9 Q. Can you give me an example of overloading a sheet cart?

10

11 A. That would be placing something where the weight is not
12 on the center part of the sheet cart causing the cart to
13 tip.

14

15 Q. What about loading

16

17 Q. a sheet cart in a way where you cannot see in front of
18 you? --

19

20 ::

21 : Objection. Vague and ambiguous.

22

23 A. -- The nature of the merchandise that we use, some
24 merchandise would be taller than you if you're pushing

25 the cart.

1

2 A. So you have to look around the sides.

3

4 Q. Okay. But in those scenarios,

5

6 Q. Depot

7

8 Q. ask you to

9

10 Q. do it with a partner. Right?

11

12 A. Not to my recollection other than the video.

13

14 Q. You agree with me that

15

16 Q. customers have the right to shop safely in a store? --

17

18 ::

19 : Objection.

20

21 ::

22 : Being ambiguous.

23

24 A. I'm not sure how I would answer that.

25

1 Q. What? Do you agree that customers should not be struck
 2 by
 3
 4 Q. store equipment?
 5
 6 A. I agree that people should be able to shop safely.
 7
 8 Q. Okay. They should be able to shop safely without getting
 9 bumped
 10
 11 Q. by employees moving merchandise
 12
 13 Q. on a cart. Right? --
 14
 15 ::
 16 : Objection.
 17
 18 ::
 19 : Vague. Invigus.
 20
 21 A. I I don't know.
 22
 23 Q. Well, would you agree with me that when transporting
 24 merchandise,

1 Q. your car and merchandise should never make contact with
 2 a customer? --
 3
 4 ::
 5 : Objection.
 6
 7 ::
 8 : Big and ambiguous.
 9
 10 A. I agree with you that that should be the ideal
 11 situation.
 12
 13 Q. Okay. And then, so when transporting
 14
 15 Q. merchandise,
 16
 17 Q. you agree with me as a receiving associate is your
 18 responsibility
 19
 20 Q. to avoid contact
 21
 22 Q. with customer at all times. Correct? --
 23
 24 ::

25 : Objection. Being ambiguous.

1

2 A. -- That's the ideal goal.

3

4 Q. Okay. When transporting

5

6 Q. merchandise, are you required to make sure a customer
7 knows you're approaching?

8

9 A. With the cards, you're not required to have any kind of
10 warning.

11

12 Q. What if you're getting close to a customer and that
13 customer is shopping? Are you required to to

14

15 Q. let them know, to say something, or you just continue
16 moving the cart? --

17

18 ::

19 : Objection. Calls for speculation.

20

21 A. -- As far as moving a cart, I don't recall any kind of
22 verbal warning that's required to be given.

23

24 Q. Would you agree with me that you should never be on the

25 cell phone when transporting

1

2 Q. merchandise

3

4 Q. on a sheet card?

5

6 A. Yes.

7

8 Q. Okay. You agree with me that cell phone use can be
9 distracting?

10

11 Q. Yes. Okay. You agree with me that you should always use
12 both hands

13

14 Q. when moving merchandise on a Sheet Card?

15

16 A. Yes.

17

18 Q. Alright. And you agree with me that customer and
19 employee safety is the highest priority when moving
20 merchandise

21

22 Q. on a sheet card?

23

24 ::

25 : Action.

1

2 A. That's the goal.

3

4 Q. Alright.

5

6 Q. You agree with me if you bump into a customer,

7

8 Q. you should stop immediately and get a manager.

9

10 A. Yes.

11

12 Q. And you agree with me that if you bump into a customer,
13 you should check on customer?

14

15 A. If that happens, yes.

16

17 Q. Okay.

18

19 Q. And you should all and you should also get help right
20 away if the customer is injured. Correct?

21

22 A. Yes.

23

24 Q. Alright. Besides this incident, have you ever had any

25 prior incidents where you

1

2 Q. bumped into

3

4 Q. or hit a customer with merchandise or while moving a
5 card?

6

7 A. No.

8

9 Q. Have you ever been written up for any

10

11 Q. violation of

12

13 Q. a policy

14

15 Q. when working at Home Depot?

16

17 Q. No.

18

19 Q. Have you ever been given a

20

21 Q. warning

22

23 Q. about

24

25 Q. not complying with a policy at Home Depot?

1

2 A. No.

3

4 Q. Excuse me.

5

6 Q. Have you ever been counseled for using your phone while
7 working?

8

9 Q. No. Have you ever been written up for using your phone
10 while working? No.

11

12 Q. After this incident, did you undergo any additional
13 safety training?

14

15 A. Other than the normal required training.

16

17 Q. Okay. Um, after the incident, did you go

18

19 Q. did you receive any

20

21 Q. additional training besides the normal required
22 training? Like, they

23

24 Q. had you rewatch a video immediately after the incident

25 or counsel you on how to move a sheet cart correctly,

1

2 Q. anything like that?

3

4 A. No.

5

6 Q. Alright. Do you know if this incident came up in any
7 safety meetings?

8

9 A. I do not.

10

11 Q. Okay. And you have monthly safety you guys had monthly
12 safety meetings at Home Depot. Correct?

13

14 A. I don't recall.

15

16 Q. Okay. Did you have weekly safety meetings?

17

18 A. I don't recall any safety meetings.

19

20 A. We monthly

21

22 A. safety

23

24 A. program that we had to on

25

1 A. an online app.

2

3 A. As far as what management does, I don't know.

4

5 Q. Did you have any pre shift meetings about safety?

6

7 A. I don't recall any, uh, standard meetings, but safety
8 was discussed.

9

10 A. But the the way the shifts in receiving are, we don't
11 come on at the same time as the other associates do.

12

13 A. Our shifts are staggered.

14

15 Q. Okay. So there was never, like, a

16

17 Q. times before

18

19 Q. your shift where you would get with your manager,

20

21 Q. hey. We're we're getting a big load.

22

23 Q. Um, we're gonna be moving a lot of merchandise around
24 the store.

25

1 Q. Remember, watch out for customers. Remember, use both
2 hands when moving merchandise. Remember, get a partner.
3 There's nothing like that ever stated to you

4

5 Q. previous meeting.

6

7 A. In the pass down between associates,

8

9 A. the discussion as to what was coming into the store and
10 what we needed to do, that was discussed.

11

12 A. And yes, we always talked about

13

14 A. how we had to handle the merchandise.

15

16 Q. Okay. And so,

17

18 Q. um, we just saw the video where you're supposed to use a
19 partner,

20

21 Q. um, at

22

23 Q. where where they say you're supposed to use a partner.

24 Right?

25

1 Q. So my question is, was that regular practice

2

3 Q. by receiver associates at Home Depot

4

5 Q. when you worked there?

6

7 A. Were carts?

8

9 Q. Yeah. Whenever moving merchandise on a sheet cart, was
10 it regular practice at Home Depot at the time of the
11 incident

12

13 Q. to get a partner?

14

15 ::

16 : No. Objection. Calls for speculation.

17

18 Q. Okay. So

19

20 Q. how often did you move merchandise on a sheet cart when
21 working at Home Depot?

22

23 A. Almost daily.

24

25 Q. Alright. And so and you never

1

2 Q. got a partner when movie and merchandise on the sheet
3 card. Correct?

4

5 A. Depending on the product that was on the sheet card.

6

7 A. If the product was

8

9 A. such that you needed two people to push the cart, then
10 you would get a second person.

11

12 Q. Okay.

13

14 Q. So how often would you need two people to push a cart?

15

16 Q. Was it daily?

17

18 Q. Was it once a week?

19

20 A. I couldn't tell you.

21

22 A. It's merchandise specific.

23

24 A. Certain

25

1 A. merchandise when it comes in

2

3 A. and you're moving it into the

4

5 A. where it goes.

6

7 A. Some merchandise you need two people, some people, some
8 you most you don't.

9

10 Q. Okay.

11

12 Q. So

13

14 Q. just give me a percentage. How like,

15

16 Q. what what's the percentage of times that you

17

18 Q. moved items

19

20 Q. on a sheet cart with a partner?

21

22 A. I don't know. I'd be guessing.

23

24 Q. I mean, fifty fifty.

25

1 Q. Was it very was it 10%?

2

3 Q. Was it 90%?

4

5 A. Again, is the

6

7 A. that would be guessing. It was it was minimal.

8

9 Q. Alright. And as you were

10

11 Q. moving these items without a partner

12

13 Q. on on a sheet cart,

14

15 Q. would your manager ever stop you and say, hey. Use a
16 partner?

17

18 A. Not that I recall.

19

20 Q. How often would a manager

21

22 Q. see you move items

23

24 Q. on a sheet cart without a partner?

25

1 A. I wouldn't know because we didn't have a we didn't have
2 a manager in receiving.
3
4 Q. Okay. So there was no manager monitoring you at you you
5
6 Q. in receiving?
7
8 A. Receiving is not like the rest of the store.
9
10 A. It there's
11
12 A. more autonomy in receiving. --
13
14 ::
15 : Vague and ambiguous.
16
17 Q. -- My question is, do you think that Home Depot
18
19 Q. should have
20
21 Q. had a manager there
22
23 Q. requiring
24

25 Q. receiver associates to partner up while moving

1 merchandise on a sheet cart?

2

3 ::

4 : Calls

5

6 ::

7 : for speculation.

8

9 A. I don't know what Home Depot wants.

10

11 Q. This is kind of where I'm getting at. There's a video
12 that they're showing to you

13

14 Q. that you should partner up with an associate and not and
15 you're telling me that, hey. Look. That wasn't regular
16 practice

17

18 Q. at

19

20 Q. Home Depot.

21

22 Q. And so

23

24 Q. do you think that there's a disconnect between the

25 training that they show you and what actually happens at

1 Home Depot? --

2

3 ::

4 : Objection. Calls for speculation.

5

6 A. -- I don't know. I don't know all of Home

7

8 A. Depot stores. I don't know what their their

9

10 Q. corporate thought is. Well, I'm talking about Alamo
11 Heights location.

12

13 Q. Right? They're they're showing you,

14

15 Q. receiver associates, these videos,

16

17 Q. and then in practice,

18

19 Q. they're not enforcing it. Is that

20

21 Q. am I correct in saying that? --

22

23 ::

24 : Objection. Calls for speculation.

25

1 ::

2 : Unfair characterization.

3

4 A. You asking me to make an opinion about something I don't
5 have all the I don't know what management thinks at The
6 Home Depot and Sunset.

7

8 Q. Right. Right.

9

10 Q. Right. Yeah. I'm just trying to to get what the what the
11 norm was over there because when I watched that video,
12 and I'm sure you saw it, it said always,

13

14 Q. right, always

15

16 Q. partner up

17

18 Q. when moving merchandise on a sheet cart. And you just
19 testified that

20

21 Q. using a partner, uh,

22

23 Q. was minimal.

24

25 Q. And so

1

2 Q. I'm just trying to figure out

3

4 Q. how often you saw other people

5

6 Q. put merchandise,

7

8 Q. use a partner while moving merchandise on a sheet cart.

9 Can you answer that question?

10

11 A. I don't really recall

12

13 A. watching anybody else move stuff.

14

15 A. I mean, receiving

16

17 A. is separate from the floor.

18

19 A. So most of what we do, the floor doesn't see.

20

21 A. Most of what the floor does, we don't see.

22

23 A. Receiving is a different

24

25 A. operation in the store itself.

1

2 Q. Okay. Uh, did you always

3

4 Q. have a partner a partner

5

6 Q. at your disposal to to use?

7

8 Q. Or I mean, that's a bad question. I just wanna know if
9 there was

10

11 Q. if Home Depot provided you

12

13 Q. with somebody to help

14

15 Q. whenever moving this this merchandise

16

17 Q. on sheet carts, or was it just you?

18

19 ::

20 : Confection,

21

22 ::

23 : vegan, ambiguous.

24

25 A. Depending on the time of day, there might be three of us

1

2 A. in receiving,

3

4 A. but each only

5

6 A. the person in the middle shift

7

8 A. would always have another receiving associate there.

9

10 A. The opening

11

12 A. receiving associate

13

14 A. typically opened alone.

15

16 A. Me as the closing receiving

17

18 A. associate

19

20 A. usually

21

22 A. ended up closing alone.

23

24 A. We could ask for help from sales

25

1 A. associates on the floor

2

3 A. if they were available.

4

5 Q. Okay.

6

7 A. So, it really depended on the store's manpower.

8

9 Q. All right.

10

11 Q. Whenever you were closing

12

13 Q. alone,

14

15 Q. you did not have another receiving

16

17 Q. associate

18

19 Q. to help you move,

20

21 Q. uh, merchandise on a sheet cart. Correct?

22

23 A. The middle shift associate would be there for part of

24

25 A. there was

1

2 A. well, for part of the time to be able to help move

3

4 A. the product that was in receiving.

5

6 A. But the the product that and once that person's shift
7 was over with,

8

9 A. I was alone in in receiving.

10

11 A. Okay. And did

12

13 Q. Home Depot still expect you to move

14

15 Q. merchandise

16

17 Q. on a chic cart

18

19 Q. whenever you were alone

20

21 Q. as a closing associate? --

22

23 ::

24 : Objection. Calls for speculation.

25

1 A. -- Part of my job duties as the closing associate was to
2 prepare
3
4 A. receiving for the
5
6 A. replenishment truck,
7
8 A. which meant I had to clear
9
10 A. most of the floor and receiving of merchandise.
11
12 A. So I had to move
13
14 A. whatever merchandise was in there out to the Sales
15 Floor.
16
17 Q. Okay.
18
19 Q. And so you were expected to do your job whether there
20 was another receiving associate or not. You were still
21 expected to move this merchandise around the store.
22 Correct? --
23
24 ::

25 : Objection. Calls for speculation.

1

2 A. -- I that was what I was expected to do.

3

4 Q. Okay.

5

6 Q. Can you just tell me about the hiring process at Home
7 Depot? Who did you talk to?

8

9 Q. Um, did you submit an application,

10

11 Q. orientation?

12

13 Q. Just

14

15 Q. go ahead and let me know.

16

17 A. I applied online.

18

19 A. I received the phone call,

20

21 A. went in and spoke to

22

23 A. the

24

25 A. HR associate.

1

2 A. I had

3

4 A. a interview with the store manager.

5

6 A. I was asked to wait for a moment.

7

8 A. They informed me that I had been

9

10 A. provisionally hired.

11

12 A. Then

13

14 A. they had me do a drug test.

15

16 A. Then they called me and told me what day to report for
17 an onboarding process,

18

19 A. which included

20

21 A. a myriad of videos

22

23 A. and

24

25 A. yeah. It was

1

2 A. quite a few.

3

4 Q. Okay.

5

6 Q. And then at orientation,

7

8 Q. is that whenever you saw the video that we saw earlier
9 on exhibit number,

10

11 Q. uh, two?

12

13 A. I couldn't tell you the exact time I saw that video.

14

15 Q. Okay. Did you watch any other videos that related to
16 customer safety when moving around merchandise on a
17 card?

18

19 A. I saw videos about safety,

20

21 A. uh, which

22

23 A. included

24

25 A. numerous

1

2 A. operations in the store.

3

4 Q. Okay.

5

6 Q. So I I've seen at Home Depot

7

8 Q. people

9

10 Q. walking around with these flags.

11

12 Q. Right? When when when are you supposed to get a partner

13

14 Q. and,

15

16 Q. yeah. When are you supposed to

17

18 Q. let me let me strike that.

19

20 Q. Can

21

22 Q. you let me know

23

24 Q. when you're supposed to get somebody

25

1 Q. to raise up those flags that that I kinda just

2 described. Do do you know what I'm talking about?

3

4 Q. I'm not I have an idea, but Yeah. Yeah. So I I mean, I
5 I've been at Home Depot lots of times. Right? And I've
6 seen, you know, people on forklifts and whenever
7 somebody's moving something on a forklift, there's guys
8 around with flags. So my question is, when are you
9 supposed to get this extra guy?

10

11 A. When you're move when you're using lift machinery

12

13 A. which means machinery that has

14

15 A. its own power and

16

17 A. that you

18

19 A. drive,

20

21 A. then you are required to have what's called a spotter.

22

23 A. Mhmm. That person walks a certain distance in front of
24 the machine and

25

1 A. clears the way for the machine.

2

3 Q. Okay. I understand. And so your situation is not like

4 that. Correct?

5

6 A. Correct. Okay.

7

8 Q. So

9

10 Q. were did you also undergo any computer based training?

11

12 A. All of the videos that you're talking about,

13

14 A. they all came across on The Home Depot

15

16 A. app.

17

18 A. So it was on a computer.

19

20 Q. Do you remember the name of the app? Is it My Apron or
21 something like that?

22

23 A. I

24

25 A. think My Apron encompasses

1

2 A. a myriad of things.

3

4 A. I don't remember. I think My Apron is just the name of

5

6 A. the

7

8 A. Associates app.

9

10 Q. Okay.

11

12 Q. Alright.

13

14 Q. And then

15

16 Q. you went from part time to receiving associate. Was that
17 like a promotion?

18

19 A. It moved me from part time to full time.

20

21 Q. Okay.

22

23 Q. This training that you received whenever you were first
24 hired,

25

1 Q. did it go over, um, moving merchandise between aisles?

2 --

3

4 ::

5 : Objection.

6

7 ::

8 : Big and biggies.

9

10 A. It was pretty encompassing

11

12 A. series of

13

14 A. information.

15

16 A. Okay. It

17

18 A. almost, it lasts like a week.

19

20 Q. Did they ever give you like a handbook or a safety

21 manual?

22

23 A. You could get an associate's book

24

25 A. and there's,

1

2 A. I mean, safety is, I

3

4 A. mean, it's

5

6 A. talked about in various times.

7

8 Q. Okay. Do do you remember

9

10 Q. ever reading anything in a safety manual or a handbook

11

12 Q. about,

13

14 Q. uh, when maybe you should get a partner when moving
15 things, anything like that?

16

17 Q. Typically you were So

18

19 Q. the predominant

20

21 A. time that you would get

22

23 A. someone

24

25 A. for safety would be when you're using lift machinery and

1 not everybody in the store

2

3 A. is qualified to use lift machinery.

4

5 A. So, but to be a spotter, everyone in the store can be a
6 spotter.

7

8 Q. Okay. What I'm sorry. Maybe I wasn't clear. Yeah. I just
9 wanted to know if you've ever seen, like, a handbook or
10 a safety manual when you're supposed to get a partner.

11

12 A. I've not seen any document that says that other than for
13 lift machinery.

14

15 Q. Okay.

16

17 Q. Alright. And you stated that

18

19 Q. you

20

21 Q. received on-site training. Correct?

22

23 A. Correct.

24

25 A. Okay. Majority majority of the job is OJT.

1

2 Q. Okay.

3

4 Q. Um, so on the job training

5

6 Q. is what you just referred to OJT, right? Yes. Okay. Um,
7 who trained you

8

9 Q. at Home Depot?

10

11 A. Various individuals,

12

13 A. uh,

14

15 A. managers,

16

17 A. other associates.

18

19 A. It just depended on what the operation was.

20

21 Q. Okay,

22

23 Q. well who was the person that trained you the most? Was
24 it Brad, was it Tom?

25

1 A. Again, it depended on the operation.

2

3 Q. Brad

4

5 A. trained us a lot in receiving operations.

6

7 A. Day to day operations,

8

9 A. I don't remember.

10

11 A. It was probably different senior

12

13 A. associates or other managers.

14

15 A. Brad wasn't there when I first started, so.

16

17 Q. Okay.

18

19 Q. Can you just describe the on the job training that you
20 received in regards to

21

22 Q. pushing around a cart?

23

24 A. What was

25

1 A. training and how to lift and load the different carts,
 2
 3 A. which that
 4
 5 A. was pretty
 6
 7 A. much just
 8
 9 A. on another associate showing you the same thing that
 10 they showed
 11
 12 A. on the videos,
 13
 14 A. keeping things close to your chest,
 15
 16 A. using the right height cart for the
 17
 18 A. weight of the item,
 19
 20 A. floor to place it on the carts,
 21
 22 A. what the different carts could be used for,
 23
 24 A. what the balance of each cart was.

1 A. I mean, it's really specific to the item.

2

3 Q. Okay.

4

5 Q. At which

6

7 Q. this might be a bad question, okay?

8

9 Q. Which cart requires the most control?

10

11 Q. Or which

12

13 Q. cart is the most difficult to use?

14

15 A. Again, it depends on

16

17 Q. In in your opinion, based on your knowledge, skill, and
18 experience at Home Depot,

19

20 Q. given all the cards, which ones are the most difficult?

21

22 Q. Which card is the most difficult to move and maneuver
23 with items on top of them? --

24

25 ::

1 : Objection, vague and ambiguous.

2

3 ::

4 : Calls for speculation.

5

6 A. -- Again,

7

8 A. it's dependent on your situation and the material that's
9 on the cart. If

10

11 A. some items are longer than the carts, some items are
12 heavier

13

14 A. than other items. Some items

15

16 A. it's

17

18 A. Each

19

20 A. equipment item has its own characteristic.

21

22 A. So they can,

23

24 A. depending on what you have on it, it can be

25

1 A. more difficult or less difficult.

2

3 A. Uh, it really is dependent

4

5 A. situationally and on the material. Okay.

6

7 Q. Yeah. Because when I saw the video of the sheet cart, it
8 kind of looked like it tipped a little back and forth, I
9 was just wondering if that

10

11 Q. maybe made it a little bit difficult to,

12

13 Q. um,

14

15 Q. maneuver items on the cart or if it required

16

17 Q. different type of training,

18

19 Q. just things like that. That's really what I was trying
20 to dig into.

21

22 A. The cart itself

23

24 A. is just

25

1 A. maintaining the center of the balance of the item you

2 place on it. That's

3

4 A. what creates that rocking motion.

5

6 A. So, as long as you center

7

8 A. the material,

9

10 A. now what that also causes is when you're moving it, the
11 cart makes a very loud noise.

12

13 A. It has a rhythmic

14

15 A. sound to it that is actually rather loud.

16

17 Q. Uh-huh.

18

19 Q. Okay. And so when does it make that noise again?

20

21 Q. When you're moving it. Okay. So is it only when you're
22 moving it, it makes that note like, only when you're
23 moving heavy items or when you're moving it in general?

24

25 Q. In general. Okay.

1

2 Q. Is there any other type of training on the job training
3 that you received as it applies to moving items around
4 customers?

5

6 Q. Other than what you've already gone over, no. Okay. Uh,
7 we've been going for about an hour. Uh, do you wanna
8 take a five,

9

10 Q. ten minute break?

11

12 A. I'm fine.

13

14 A. Unless someone else needs a break. Is everybody else
15 okay?

16

17 THE REPORTER::

18 THE REPORTER: I'm fine.

19

20 Q. Lucy is fine. Okay. Good.

21

22 Q. Alright.

23

24 Q. So I'm gonna go back on this video. I I saw some things

25 earlier.

1

2 Q. I just wanna ask you a question.

3

4 Q. Oops.

5

6 Q. Sorry. I'm having difficulty right now.

7

8 Q. Alright. I saw something about

9

10 Q. evidence tags and I just wanna ask you a question about
11 it. Okay?

12

13 A. Let me go ahead and play the video and then ask you a
14 question. If the car is equipped with securing poles,
15 make sure they are attached and in working condition.

16

17 A. If a card is unsafe to use, tag it with an out of
18 service tag and remove it from the sales floor.

19

20 A. In case a card is involved in an accident, be sure to
21 place an evidence tag on that card and secure it.

22

23 Q. Alright. So my question is,

24

25 Q. do you know if the card that you were using at the time

1 of the incident

2

3 Q. do you know if an evidence tag

4

5 Q. was ever placed on it? I don't know.

6

7 Q. Okay. Do you know if an evidence tag was ever placed on
8 the windows you were transporting?

9

10 A. I don't know.

11

12 Q. Okay.

13

14 A. Affected by the size and the stability of the load.

15

16 A. Overloading shopping carts can increase the possibility
17 they could tip over or have merchandise slip over the
18 edge and cause a trip hazard.

19

20 A. Make sure that the load is stable, balanced, and
21 products are placed in the center of the cart.

22

23 Q. Proper

24

25 Q. Okay. That's all I have. Actually, I need to use the

1 restroom.

2

3 Q. Take a five minute break.

4

5 THE REPORTER::

6 THE REPORTER: Okay. The time is 02:47PM,

7

8 THE REPORTER::

9 THE REPORTER: and we are off the record.

10

11 ::

12 : Heath, you can mute yourself and, uh,

13

14 ::

15 : you know, on, uh, take off your video and take a break.

16 Okay. Thank you.

17

18 THE REPORTER::

19 THE REPORTER: Okay. Are we ready to go back on?

20

21 Q. Yep.

22

23 THE REPORTER::

24 THE REPORTER: Yep.

25

1 THE REPORTER::

2 THE REPORTER: Okay.

3

4 THE REPORTER::

5 THE REPORTER: The time is 02:55PM.

6

7 THE REPORTER::

8 THE REPORTER: This is a continuation of the deposition for
9 mister Heath Thomas, and we are on the record.

10

11 Q. Okay, mister Thomas. Whenever you underwent on the job
12 training,

13

14 Q. did they teach you to use a partner when,

15

16 Q. uh,

17

18 Q. moving merchandise on a Sheet Card?

19

20 A. Only if the the

21

22 A. material required

23

24 A. an extra set of hands.

25

1 Q. Okay. And then in what scenarios

2

3 Q. does that apply?

4

5 A. Again, it's material specific.

6

7 A. For instance,

8

9 A. a roll of carpet.

10

11 Q. Okay. And so

12

13 Q. a pallet and

14

15 Q. 20 windows

16

17 Q. would not require a partner?

18

19 A. No.

20

21 Q. And how tall are you?

22

23 A. Five seven.

24

25 Q. Does Home Depot have a cell phone policy?

1

2 A. I

3

4 A. recall that it does have a cell phone policy.

5

6 A. I couldn't quote it to you.

7

8 Q. Do you know if it's don't you know, there's a actual

9 written policy that says do not use your cell phone

10 while

11

12 Q. working?

13

14 A. I

15

16 A. don't

17

18 A. remember it verbatim,

19

20 A. but I do believe that it is

21

22 A. I I couldn't tell you because I do know that that

23

24 A. there's some communication that happens, uh, via phone.

25

So I I I I'd be guessing, so I can't tell you that. It's

1 been a while, so

2

3 Q. Okay.

4

5 Q. Um, did you have, like, a walkie talkie on you at the
6 time of the incident?

7

8 Q. A radio?

9

10 A. No, I had a first phone.

11

12 Q. What does that mean?

13

14 A. That is The Home Depot

15

16 A. It's a device. It does everything from

17

18 A. It can act as

19

20 A. a radio.

21

22 A. It also

23

24 A. helps you audit merchandise. It helps you receive

25 merchandise.

1

2 A. It helps you

3

4 A. set up merchandise for shipping out of the store.

5

6 A. It is

7

8 A. a handheld smartphone for lack of a better term.

9

10 Q. Okay. Are you required to

11

12 Q. you know, make a radio call on that phone,

13

14 Q. you know, if there's ever an incident

15

16 Q. with a customer?

17

18 A. I wouldn't say it's required,

19

20 A. but

21

22 A. it is a method of communication so you

23

24 A. can use it to communicate if there's something that you

25 need to communicate to another associate.

1

2 Q. Okay.

3

4 Q. And then at the time of the incident, how many receiver
5 associates

6

7 Q. were working?

8

9 A. Because I don't remember the exact time, I would be
10 guessing whether I had a colleague there or not so I
11 don't want to guess.

12

13 Q. Okay. Do you remember, um,

14

15 Q. what time did your shift start that day?

16

17 A. Approximately 09:00.

18

19 Q. 9AM?

20

21 Q. Or 9PM. Sorry.

22

23 A. No.

24

25 A. 9AM.

1

2 Q. Okay. And you don't remember what time this incident
3 occurred?

4

5 A. I don't.

6

7 Q. Do you remember if it occurred at the start of your
8 shift or at the end of your shift?

9

10 A. It would have been towards the end of my shift.

11

12 Q. Okay. And at the end of the shift is whenever

13

14 Q. you are the only receiver associate. Correct?

15

16 A. Towards the end, yes. It's usually it's usually the last

17

18 A. three hours

19

20 Q. Okay.

21

22 Q. Approximately.

23

24 Q. Okay. And then so

25

1 Q. which department is closest

2

3 Q. to

4

5 Q. the area where you work the most? Wherever you guys
6 receive the merchandise?

7

8 A. Flooring.

9

10 Q. Okay.

11

12 Q. Did you ever ask people in flooring

13

14 Q. to help move merchandise on a SheCart?

15

16 A. I don't recall.

17

18 Q. Okay.

19

20 Q. Whenever you underwent on the job training,

21

22 Q. did your boss or whoever was training you say, hey. If
23 even if there's not a receiver associate available and
24 you have to move this merchandise, this rug on a sheet

25 cart, Please get somebody from a different department.

1 Was that ever stated? Something like that?

2

3 A. No. Not that I recall.

4

5 Q. Okay. But you were allowed to request other associates
6 to help move merchandise on a sheet cart. Correct?

7

8 A. Yes.

9

10 A. K.

11

12 Q. Did anybody ever talk to you or counsel you on this
13 incident about how it could have been prevented?

14

15 A. I don't recall.

16

17 Q. Do

18

19 Q. you think it would have been safer to use

20

21 Q. a partner

22

23 Q. when moving the merchandise

24

25 Q. at the time of the incident? --

1

2 ::

3 : Objection. Calls for speculation.

4

5 A. -- I don't know.

6

7 Q. Have you ever thought about this and

8

9 Q. thought about how this could have been avoided?

10

11 A. No.

12

13 Q. Do

14

15 Q. you know

16

17 Q. about my client's injuries?

18

19 A. No.

20

21 A. Okay.

22

23 Q. Okay. And you were not disciplined because of this
24 incident. Correct?

25

1 A. No.

2

3 Q. Okay.

4

5 Q. Have you ever seen this document before?

6

7 A. Yes.

8

9 Q. Okay. Is this a document you reviewed before this
10 deposition?

11

12 A. Yes.

13

14 Q. Okay. After the incident, did you ever see Tom Rodriguez

15

16 Q. write up a statement?

17

18 A. I did not see him write anything.

19

20 Q. Okay. Did you see him fill out a report on a computer,
21 anything like that?

22

23 A. No. I did not.

24

25 Q. Okay. And so it says at what time did the incident

1 occur? It says thirty. Do you know what that means?

2

3 A. I do not.

4

5 Q. Okay.

6

7 Q. And so it gives a brief description. I'm gonna go ahead
8 and read it and then ask you a question. Okay?

9

10 Q. It says Heath was pushing a cart of windows along the
11 back D 26

12

13 Q. next to the water heaters

14

15 Q. that when he bumped into

16

17 Q. the customer on the back, we offered her a chair to sit
18 down and give her a bottle of water.

19

20 Q. Did I read that correctly?

21

22 A. That's the way it's written.

23

24 Q. Okay. Do you agree disagree with anything written in

25 this statement?

1

2 A. I can't definitively say that I bumped into the
3 customer.

4

5 Q. Okay. Did you ever tell Tom that you bumped into to the
6 customer?

7

8 A. I did not tell him that I bumped into the customer.

9

10 Q. Okay. What did you tell Tom?

11

12 A. I said the customer says that I bumped into her.

13

14 Q. Okay. Do you have any reason to believe that my client
15 is lying about being bumped into?

16

17 A. I have no idea.

18

19 Q. Okay.

20

21 Q. What did she tell you? Let me strike that question. I'll
22 ask it later.

23

24 Q. This department head right here, Jim, did you speak to

25 Jim about the incident?

1

2 A. No.

3

4 Q. Okay. Did you speak to any other supervisor about this
5 incident besides Tom?

6

7 A. Not that I recall.

8

9 Q. K. Did you ever speak to Brad about this incident?

10

11 A. Not that I recall.

12

13 Q. Okay. And then it says merchandise description,

14

15 Q. thermally broken aluminum single hung window

16

17 Q. with glass screen included. So you were

18

19 Q. transporting 20 of these. Correct?

20

21 A. I believe so. Yes.

22

23 Q. Okay. And were they wrapped with, like, saran wrap or
24 were they just 20 windows on a on a pallet?

25

1 A. They were just placed on a pallet.

2

3 Q. Okay. And where were you moving them to?

4

5 A. To the window section of the store.

6

7 Q. Okay. Did you ever prepare a written statement?

8

9 A. I recall having written down a statement.

10

11 A. I don't know what happened to it.

12

13 Q. Did you give it to somebody?

14

15 A. I gave it to Tom.

16

17 Q. Do you know what did you see what Tom did with it? I did
18 not.

19

20 Q. What did you put on the statement?

21

22 A. I

23

24 A. would be

25

1 A. paraphrasing because I don't

2

3 A. don't have it in front of me to tell you exactly what

4 was on it.

5

6 Q. You can paraphrase.

7

8 A. That I remember

9

10 A. moving

11

12 A. a tabletop

13

14 A. with a pallet of windows,

15

16 A. going to the window section,

17

18 A. looking around the sides

19

20 A. when I felt the bump.

21

22 A. I was looking around the left side, I felt the bump, I

23 stopped the cart,

24

25 A. I looked over the right and there was a woman standing

1 there

2

3 A. with a grimace rubbing her right butt cheek.

4

5 A. And I said,

6

7 A. I don't remember exactly what was said,

8

9 A. but I do remember saying I'm going to go get a manager.

10 I may have tried to use the first phone but I can't

11

12 A. be I'm not for sure that I tried to use the first phone

13 or not

14

15 A. but I knew that I ended up having to walk to the front

16 of the store to get a manager.

17

18 Q. Okay. So you did feel a bump whenever moving the

19 merchandise.

20

21 Q. Correct?

22

23 A. Yes. I felt the bump.

24

25 Q. Okay. And then did the merchandise

1

2 Q. come to a stop?

3

4 Q. The cart, did it come to a stop?

5

6 A. Yes. I stopped the cart and the merchandise on top of it
7 also stopped.

8

9 Q. Okay. Did the cart stop after the bump?

10

11 A. I felt the bump and stopped the cart.

12

13 Q. Okay.

14

15 Q. And then you saw my client

16

17 Q. grimace

18

19 Q. and rubbing

20

21 Q. her right butt cheek. Is that correct?

22

23 A. When I looked around the right side, I saw her standing

24

25 A. in front of the

1

2 A. woman off to the side actually

3

4 A. and rubbing her right butt cheek and she made a face.

5

6 Q. Okay.

7

8 Q. Alright. I'm have you seen this

9

10 Q. document before?

11

12 A. Yes.

13

14 Q. Okay. I'm gonna mark this as plaintiff exhibit number

15

16 Q. I believe we're on 3.

17

18 THE REPORTER::

19 THE REPORTER: 3.

20

21 Q. Okay.

22

23 Q. What is your understanding of what this document is?

24

25 A. It says it's a general liability

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24

A. claim

A. document.

Q. Okay. And so I'm gonna go ahead and read it and then ask
you some questions. So it states introduction,

Q. when an incident occurs and customers may be injured on
Home Depot premises,

Q. when their property

Q. may be damaged as a result of Home Depot operations or
when they may experience bodily injury or property
damage resulting from home services

Q. or the appliance delivery programs,

Q. management needs to complete the applicable forms.

Q. These forms are contained in the general liability claim
file folder which is available on Ariba.

Q. Um, so do you know what what is Ariba?

1

2 A. I have no idea.

3

4 Q. Okay. You've never accessed anything

5

6 Q. called a ariba.

7

8 Q. Correct?

9

10 A. Not to my recollection.

11

12 Q. Okay. And it goes on general liability claim worksheet
13 on the back of the general liability claims file folder.
14 This form is used by store management to document
15 incident facts.

16

17 Q. Okay.

18

19 Q. This second one, witness incident statement form. This
20 form is used to document statements of witnesses who may
21 have relevant knowledge of the incident. Do you see
22 that?

23

24 A. I do. Okay.

25

1 Q. Did you

2

3 Q. know that

4

5 Q. so before this incident, did you know that you had to
6 document

7

8 Q. and write down

9

10 Q. an incident statement that you had to fill out an
11 incident statement form if an incident ever happened
12 with

13

14 Q. somebody who claimed bodily injury at the premises?

15

16 Q. No. --

17

18 ::

19 : Vague and ambiguous unfair characterization.

20

21 Q. -- Okay. And it's your testimony that you did write down
22 a statement.

23

24 Q. Correct?

25

1 A. To my recollection, I did. Okay. And then

2

3 Q. did Tom ask you to write down a statement?

4

5 A. I believe so

6

7 A. but I'm not positive.

8

9 Q. Okay. Where did you write the statement at?

10

11 A. Uh, in, uh, the manager's Office.

12

13 Q. Okay. Who was with you in the manager's office when you
14 wrote the statement?

15

16 A. Uh, I don't believe anyone was with me.

17

18 Q. Okay.

19

20 Q. Did you ever see,

21

22 Q. um, my client write a statement?

23

24 A. No.

25

1 Q. Did you ever see any other employee write a statement of
2 what occurred?

3

4 Q. No. Okay. Did you ever talk to

5

6 Q. somebody named Sarah about the incident?

7

8 A. No.

9

10 Q. Okay. I'm

11

12 Q. sorry. I I didn't get the end.

13

14 A. I don't remember any Sarah.

15

16 Q. Okay. Uh, do you remember speaking to any, um, female
17 employee

18

19 Q. about the incident within an hour of the incident?

20

21 A. I

22

23 A. don't recall.

24

25 Q. Okay.

1

2 Q. My client,

3

4 Q. wanna represent to you, testified that a female

5

6 Q. employee saw her

7

8 Q. and tried to get

9

10 Q. her help.

11

12 Q. Do you have any idea who this female employee would be?

13

14 A. No.

15

16 Q. Okay.

17

18 Q. Were you interviewed,

19

20 Q. um, besides that statement, were you interviewed by,

21

22 Q. um, anybody other than Tom about what occurred?

23

24 A. No.

25

1 Q. Okay.

2

3 Q. Okay. I'm gonna go ahead and introduce plaintiff's
4 exhibit four.

5

6 Q. Okay. Do you recognize

7

8 Q. what's in this photo, the the area?

9

10 A. It looks familiar.

11

12 Q. Okay. Is this the area where the incident occurred?

13

14 A. Uh, it appears to appears

15

16 Q. to be.

17

18 Q. Okay. I wanna represent to you that this, uh, photo was

19

20 Q. taken at the Alamo Heights Home Depot location,

21

22 Q. um, around the

23

24 Q. plumbing

25

1 Q. section.

2

3 Q. Okay?

4

5 Q. So

6

7 Q. my next question is, do you know if Home Depot has
8 surveillance cameras?

9

10 A. I believe they do.

11

12 Q. Okay.

13

14 Q. Is it your understanding that Home Depot

15

16 Q. uses video surveillance in the store?

17

18 Q. Yes.

19

20 Q. Okay.

21

22 Q. Were you ever taught or told

23

24 Q. when

25

1 Q. the video surveillance would be reviewed?

2

3 A. It's my understanding that's for loss prevention.

4

5 Q. Okay.

6

7 A. Alright.

8

9 Q. What do the cameras look like?

10

11 A. They they are

12

13 A. round and are enclosed.

14

15 Q. Okay.

16

17 Q. So I'm pointing up here.

18

19 Q. Are are those security cameras to to the best of your
20 knowledge working at Home Depot? --

21

22 ::

23 : Objection. Vague. I

24

25 A. -- don't know if they are cameras or

1

2 A. facsimiles.

3

4 A. I

5

6 A. never

7

8 A. examined one.

9

10 Q. Okay.

11

12 Q. Do you know what they would be?

13

14 Q. They're not lights, right?

15

16 A. They appear to be cameras but I couldn't tell you for
17 sure because

18

19 A. I didn't work in that area.

20

21 Q. Did

22

23 Q. anybody ever ask you if video surveillance would be
24 reviewed of the incident?

25

1 Q. Ask me? Yes.

2

3 Q. No. Did you ever

4

5 Q. tell anybody to review video surveillance

6

7 Q. about,

8

9 Q. you know, what occurred?

10

11 A. I did not.

12

13 A. Okay.

14

15 Q. Um, did you ever overhear anybody say that video
16 surveillance would be

17

18 Q. reviewed because of this incident?

19

20 A. I did not. Okay.

21

22 Q. Alright. Um, so the

23

24 Q. cart, do you know about how much does sheet cart weigh?

25

1 A. I do not.

2

3 Q. Okay. Do you know what the sheet cart is made out of?

4

5 Q. Metal.

6

7 Q. Okay.

8

9 Q. Do you know how much a

10

11 Q. pallet

12

13 Q. weighs?

14

15 A. Depends on what you load onto it and without weighing
16 it, I'd be guessing. Yeah, just an empty pallet?

17

18 A. An empty pallet, again, I don't know exactly the weight.
19 It's made out of wood.

20

21 A. There can be metal pallets. Those are heavier.

22

23 Q. Okay.

24

25 Q. And the windows,

1

2 Q. they weren't in boxes, right? They weren't in cardboard
3 boxes. They were just 20 windows stacked on each other
4 on a pallet.

5

6 A. Yes. They're delivered like that.

7

8 A. Not on a pallet. They're not delivered on a pallet.

9

10 Q. Okay. We have to put them on a pallet. What is, like,
11 stopping them from rubbing together and breaking?

12

13 A. Dior placement, how you place them onto the pallet.

14

15 Q. Okay. Who placed the

16

17 Q. windows on the SheCart?

18

19 A. I believe I did use the

20

21 A. Reach. Is it the Reach? No. There's

22

23 A. a

24

25 A. lift machine that stays in receiving that is only for

1 receiving.

2

3 A. It's a forklift.

4

5 A. So I used that

6

7 A. placed it on top used that to lift

8

9 A. and place the tabletop beneath the pallet and then lower
10 the pallet onto the tabletop.

11

12 Q. Okay. Is it you agree that

13

14 Q. you could not lift

15

16 Q. the,

17

18 Q. um, pallet of windows that you just described by
19 yourself?

20

21 Q. That's correct. Okay. You needed a forklift to put it on
22 top of the,

23

24 Q. uh, sheet cart.

25

1 Q. Correct. Okay.

2

3 Q. Do you know do you know how heavy the palette with
4 windows was?

5

6 Q. I do not.

7

8 Q. Okay. And then the lift, you said it was a forklift or
9 was it like a Balletmore lift?

10

11 Q. It was a forklift.

12

13 Q. How long did it take you to, um, put the windows on the
14 shoot cart?

15

16 A. I don't recall. I mean, it's not a

17

18 A. it's not an

19

20 A. it's not

21

22 A. long, but it's not

23

24 A. a simple operation.

25

1 A. If

2

3 A. you know how to use the machinery and you've done it
4 before, it doesn't take

5

6 A. very long. Okay.

7

8 Q. Um, how

9

10 Q. did you keep the sheet cart stable

11

12 Q. while loading it with the pallet of windows?

13

14 A. When you, uh,

15

16 A. the the sheet carts

17

18 A. need a little bit of effort to get them to move.

19

20 A. So when you raised

21

22 A. up the

23

24 A. pallet,

25

1 A. you would lower it down to just above

2

3 A. the cart.

4

5 A. Uh-huh. And you center the cart

6

7 A. underneath

8

9 A. the palate

10

11 A. and then you would slowly lower

12

13 A. and the weight of the palate

14

15 A. with the product on top of it stabilizes the cart.

16

17 Q. Okay.

18

19 A. Receiving is is is

20

21 A. lift machinery is common in receiving.

22

23 Q. Okay.

24

25 Q. I'm gonna go ahead and introduce plaintiff's exhibitor

1 five.

2

3 Q. Can you see my screen?

4

5 Q. Oops.

6

7 Q. I had the windows up.

8

9 Q. Something just occurred. I apologize.

10

11 Q. Oh, there it is. Okay. Yeah. This is exhibit number
12 five. Um,

13

14 Q. are these the windows that you're

15

16 Q. transferring on the pallet that was on the sheet car at
17 the time of the incident?

18

19 A. I believe so other than the color. I mean, they appear
20 to be,

21

22 A. but the color is incorrect.

23

24 Q. Okay. Um, I'm trying to see, uh, how much

25

1 Q. each window weighed. You don't know how much each window
2 weighed. Correct? I do not.

3

4 Q. Let me see if I find it here.

5

6 Q. 22 pounds.

7

8 Q. So times 20, that would be

9

10 Q. or 400 pounds of

11

12 Q. windows that you put on a pallet and we're moving
13 through

14

15 Q. the store. Is that would you generally agree with that?

16

17 A. Based on what you're showing me, yes.

18

19 A. Okay.

20

21 Q. Okay, so this is exhibit five, this window, and exhibit
22 six is going to be the details of the product.

23

24 A. The color is incorrect.

25

1 Q. Okay. Thank you for that. That's that is noted.

2

3 Q. I'm going to introduce to you plaintiff's exhibit number
4 seven.

5

6 Q. Okay.

7

8 Q. So I'm gonna go ahead and start playing this and

9

10 Q. I'll ask you some questions. Okay?

11

12 A. Alright.

13

14 Q. So my first question is, is this the direction that you
15 were moving the

16

17 Q. pallet of windows

18

19 Q. through the aisle?

20

21 Q. No. Okay.

22

23 Q. So you were moving the opposite direction. Correct?

24

25 Q. Yes. Yes. Okay. And then about where

1

2 Q. did you see Delia

3

4 Q. grimace and rub her right

5

6 Q. lower backside? --

7

8 ::

9 : Objection.

10

11 ::

12 : Misstates as per testimony. Okay.

13

14 Q. -- Her right butt cheek.

15

16 A. I don't, uh, I couldn't recall which one of the aisles

17

18 A. it was.

19

20 Q. Okay. Do you know when you felt the bump? About what
21 area?

22

23 A. Probably,

24

25 A. I mean,

1

2 A. I don't remember exactly.

3

4 A. So, it would probably be closer to

5

6 A. this picture than

7

8 A. further.

9

10 Q. Okay. So,

11

12 Q. it was around this area right here where you first felt
13 the bump?

14

15 A. Probably a little further back than where you had the

16

17 A. cursor,

18

19 A. Further towards

20

21 A. receiving.

22

23 Q. Okay, so like right here?

24

25 Q. No.

1

2 A. Towards,

3

4 A. mean, you're Towards the opposite area, okay. You're
5 moving side to side and I was not going left to right,
6 was coming towards

7

8 A. this picture.

9

10 A. So it would be

11

12 A. further

13

14 A. away from this vintage.

15

16 Q. Okay.

17

18 Q. Let me let me just get a photo. Okay? Maybe

19

20 Q. it'll be easier.

21

22 Q. Okay. I'm going to introduce plaintiff's exhibit number
23 eight.

24

25 Q. I introduced an

1

2 Q. exhibit like this, but I wanna represent it's a little
3 bit different.

4

5 Q. Actually,

6

7 Q. it's this one. Sorry.

8

9 Q. This one is exhibit eight.

10

11 Q. Okay. So this is looking towards the direction you were
12 going. Correct?

13

14 Q. Yes. Alright.

15

16 Q. So where

17

18 Q. this person is,

19

20 Q. is this around the area where you felt the bump?

21

22 A. It's in the vicinity. Yes.

23

24 Q. Okay.

25

1 Q. Did, um, miss Garza tell you what she was, uh, feeling
2 at the time of the incident, uh, after the incident?

3

4 A. I don't recall speaking with her.

5

6 Q. Okay. And then you told her you're gonna get a manager?

7

8 Q. Yes. Okay. And then what did you do after that?

9

10 A. I don't recall whether I tried the first phone.

11

12 A. I may have,

13

14 A. and then I went to the front of the store to get manager
15 from

16

17 A. the office.

18

19 Q. Okay. Then once you got the phone, what did you do?

20

21 A. Once I got

22

23 Q. So

24

25 Q. you called a manager on the phone? I don't recall

1 specifically,

2

3 A. I believe I tried to call a manager,

4

5 A. but these

6

7 A. first phones are notorious for not

8

9 A. working correctly and with all the

10

11 A. so I had to walk to go get one.

12

13 Q. Okay. After the incident

14

15 Q. and after you saw my client okay. So let me strike that.

16 After you saw my client,

17

18 Q. immediately after the incident, when was the next time
19 you saw her after that?

20

21 A. I believe I walked

22

23 A. up with Tom to show him where she was at.

24

25 Q. And

1

2 A. Tom

3

4 A. introduced himself.

5

6 A. I don't remember if she was seated or not and then Tom
7 told me to go back to receiving.

8

9 Q. Okay. And then at that time when you went back with Tom,
10 did you talk to

11

12 Q. Delia Garza,

13

14 Q. my client?

15

16 A. No.

17

18 Q. Alright.

19

20 Q. Would you agree with me if you did bump into Ms. Garza

21

22 Q. that

23

24 Q. you did not

25

1 Q. have control

2

3 Q. or safe control of the cart? --

4

5 ::

6 : Vague and ambiguous.

7

8 ::

9 : All for speculation.

10

11 Q. Let me strike that question. Would you agree with me
12 that

13

14 Q. if you did bump into Ms. Garza,

15

16 Q. that you did not maintain a safe distance between

17

18 Q. the merchandise you were moving

19

20 Q. and Ms. Garza?

21

22 A. I don't know if I bumped into Ms. Garza because I did
23 not see Ms. Garza.

24

25 A. I felt a bump,

1

2 A. I stopped the cart,

3

4 A. I looked to the side

5

6 A. and someone was standing

7

8 A. in the aisleway

9

10 A. making a face rubbing their their butt cheek. That's
11 what I saw.

12

13 Q. Okay.

14

15 Q. And whenever you were moving this merchandise,

16

17 Q. where was your right immediately before the bump, where
18 were you looking?

19

20 A. I as I was moving the merchandise on the tabletop, I was
21 looking down either side of the cart,

22

23 A. alternating left and right.

24

25 Q. Okay.

1

2 Q. And I'm just looking at my notes here. Okay?

3

4 Q. You agree that

5

6 Q. Delia Garza was not at fault for this incident?

7

8 A. I have no idea.

9

10 Q. Well, I

11

12 Q. mean, do you know if she did anything to cause this
13 incident?

14

15 A. I don't know.

16

17 Q. Okay.

18

19 Q. Did miss Garza tell you what part of

20

21 Q. the merchandise or the cart struck her?

22

23 A. I don't recall having much of any conversation with her.

24

25 A. So no.

1

2 Q. Would you agree that if you did hit miss Garza with the
3 car that you did not keep a safe distance between

4

5 Q. the

6

7 Q. car and miss Garza?

8

9 A. I don't know that I bumped into her.

10

11 Q. Excuse me? Excuse

12

13 Q. me?

14

15 A. You can repeat yourself. I I didn't hear that. Who are
16 you talking to? Me or or Ms. Zhang?

17

18 Q. Oh, you,

19

20 Q. sir.

21

22 Q. Say the question again. You guys we were all talking
23 over each other. Yeah. Um, so would you agree with me
24 that if you did hit miss Garza with the cart, that you

25 did not keep a safe distance between

1

2 Q. the cart you were moving and Ms. Garza? --

3

4 ::

5 : Objection. Vague and ambiguous. Calls for speculation.

6

7 A. -- I don't know if I

8

9 A. bumped into Ms. Garza.

10

11 Q. Okay. My question's a little bit different. My question
12 is and I'm objective is nonresponsive.

13

14 Q. My question is,

15

16 Q. don't you agree that if you did hit

17

18 Q. miss Garza

19

20 Q. with the cart that you did not keep a safe distance
21 between the cart and miss Garza? --

22

23 ::

24 : Objection. Vague and ambiguous. Calls for speculation.

25

1 A. -- I

2

3 A. don't know.

4

5 Q. Do you do you have a background in

6

7 Q. medicine at all?

8

9 A. No.

10

11 Q. K.

12

13 Q. Do you know what herniated discs are?

14

15 A. I can give you a

16

17 A. medical answer on that. I have

18

19 A. a layman's perspective.

20

21 Q. Did you tell Ms. Garza you were sorry for bumping into
22 her?

23

24 A. I don't recall.

25

1 Q. Okay.

2

3 Q. Do you recognize that lady in this

4

5 Q. photo?

6

7 A. No.

8

9 Q. I'd like to represent to you that that's Miss Garza.

10

11 Q. Do you know why she's in that

12

13 Q. type of, uh,

14

15 Q. shopping cart?

16

17 Q. I have no idea. Okay. Did you know that she had to get
18 surgery because she had a nine millimeter herniated disc
19 to her back?

20

21 A. I did not know.

22

23 Q. Alright. I'm going to check my notes. But before we get
24 off, can you just

25

1 Q. be honest with me?

2

3 A. Okay?

4

5 Q. And be upfront.

6

7 Q. Did you

8

9 Q. bump in

10

11 Q. to miss Garza on the date of the incident?

12

13 A. I have been honest with you, and I do not know.

14

15 Q. Okay. So what would you have bumped into whenever you
16 felt the bump?

17

18 A. I don't know.

19

20 Q. Well, did you bump into an aisle?

21

22 A. I don't know.

23

24 Q. Did you hear

25

1 Q. any

2

3 Q. click, uh, like any bang or anything like that?

4 Actually, there was no noise.

5

6 Q. Okay. But there was noise of

7

8 Q. after you bumped into my client. Correct?

9

10 A. I don't know if I bumped into your client. Okay. Well,
11 after you said she was grimacing.

12

13 Q. Can you describe the grimacing?

14

15 A. A grimace.

16

17 Q. Okay.

18

19 Q. And then you also said that

20

21 Q. she may have been sitting down, correct, whenever you
22 came back?

23

24 A. I I couldn't be for certain, but I believe so. Okay. Did

25 you ever see her sitting down?

1

2 Q. Again, I don't recall for certain.

3

4 Q. Okay. Do you know if somebody brought a stool?

5

6 A. I don't recall.

7

8 Q. Okay.

9

10 Q. Would you agree with me that if

11

12 Q. you

13

14 Q. felt a bump,

15

16 Q. then

17

18 Q. you hit something. Would you agree with that?

19

20 A. I did feel a bump,

21

22 A. and I

23

24 A. would have pointed yeah. I hit something that made me

25 stop.

1

2 Q. Okay. And the only thing that was there

3

4 Q. that was in front of you was Miss Garza. Correct?

5

6 ::

7 : Correction. Calls for speculation. --

8

9 ::

10 : Vague and ambiguous.

11

12 A. -- I don't know.

13

14 Q. Okay. And you don't know because you couldn't see
15 because the windows were blocking your view. Is that
16 right? --

17

18 ::

19 : Objection. Vague and ambiguous.

20

21 A. -- I was looking down the left side. I had looked down
22 the right side. No one was there. I was alternating my
23 view. I could not see directly

24

25 A. where the windows were, but I was alternating my view.

1

2 A. So I couldn't tell you what it bumped into.

3

4 Q. Okay.

5

6 Q. Alright. I'm gonna take a five minute break, and I'll be
7 back.

8

9 THE REPORTER::

10 THE REPORTER: The time is 03:39PM,

11

12 THE REPORTER::

13 THE REPORTER: and we are off the record.

14

15 ::

16 : You can mute yourself and, um, take you off video for five
17 minutes.

18

19 THE REPORTER::

20 THE REPORTER: Mister Nunez, do you wanna put the exhibits in

21

22 THE REPORTER::

23 THE REPORTER: the chat and I'll download them or do I put my
24 email in there or you can just send them to my email. Oh, I

25 I can email them to you. Okay.

1

2 THE REPORTER::

3 THE REPORTER: Are we ready to go back on?

4

5 Q. Uh, yes.

6

7 THE REPORTER::

8 THE REPORTER: Okay.

9

10 THE REPORTER::

11 THE REPORTER: The time is 03:44PM.

12

13 THE REPORTER::

14 THE REPORTER: This is a continuation of the deposition for
15 mister Heath Thomas, and we are on the record.

16

17 Q. Um, so

18

19 Q. my next question is

20

21 Q. why

22

23 Q. did you

24

25 Q. stack the windows?

1

2 Q. Okay. So

3

4 Q. is there a way that you could've,

5

6 Q. um, put

7

8 Q. less windows

9

10 Q. on the cart and transfer them to where you were going?

11 --

12

13 ::

14 : Objection.

15

16 ::

17 : Vague and ambiguous. Calls for speculation.

18

19 Q. -- I'm not sure I understand your question because So so

20 my question is, you know, you you were transporting

21 about 20 windows. Is that correct?

22

23 A. Correct.

24

25 Q. Okay. Why didn't you just transport 10 windows?

1

2 Q. It has to calculation.

3

4 A. It has to do with the amount of product

5

6 A. we have. There's

7

8 A. different

9

10 A. methodologies

11

12 A. for

13

14 A. different products.

15

16 A. Windows,

17

18 A. there's

19

20 A. depending on what the order, the amount that you

21 receive,

22

23 A. you try to efficiently move them.

24

25 A. 20 windows is is is

1

2 A. about

3

4 A. little bit more than that is about the limit of what you
5 can put on a on a pallet.

6

7 A. So

8

9 A. when you have a large order, you try to minimize the
10 number of trips you have.

11

12 Q. Okay.

13

14 Q. And so you were trying to minimize the number of trips

15

16 Q. by

17

18 Q. putting

19

20 Q. around 20 windows on the sheet cart.

21

22 A. That's the practice of 20 windows on the pallet

23

24 A. is standard for more than just moving

25

1 A. them on a sheet cart.

2

3 A. There's other

4

5 A. purposes for

6

7 A. approximately that amount of windows.

8

9 Q. Okay. But there was no reason why you could have moved

10

11 Q. five windows on that sheet card. Correct?

12

13 ::

14 : Action calls for circulation.

15

16 A. That's incorrect,

17

18 Q. actually. Why?

19

20 A. As I stated earlier,

21

22 A. I have to prepare receiving

23

24 A. for the night crew to unload

25

1 A. the replenishment truck. So that means I had to clear,
2 and this is a daily occurrence of well, mostly daily
3 occurrence. So you have to clear the receiving floor
4
5 A. in order to set up
6
7 A. the
8
9 A. conveyor belt and all the
10
11 A. miscellaneous
12
13 A. other items that the night crew needs
14
15 A. to unload a truck.
16
17 A. So
18
19 A. there's a methodology to moving things out of receiving
20
21 A. and placing it on the floor in order to accomplish that,
22 especially with only one receiving associate.
23
24 Q. Okay. Was there anything physically stopping you from

1 Q. moving for transporting only five windows on the sheet
2 cart at a time? --
3
4 ::
5 : Objection. Calls for speculation.
6
7 A. -- No.
8
9 Q. Okay.
10
11 Q. Don't you think it would have been safer
12
13 Q. to move less windows
14
15 Q. so that you can see directly in front of you? --
16
17 ::
18 : Objection. Calls for speculation.
19
20 ::
21 : Vague and ambiguous.
22
23 A. -- I don't know.
24
25 Q. I mean,

1

2 Q. don't you think it's porn it's important to see what's
3 going on directly in front of you?

4

5 A. I was alternating my view left to right.

6

7 A. So and

8

9 A. this was an approved method to move the windows,

10

11 A. so

12

13 A. I don't know.

14

15 Q. But you still hit somebody. Correct?

16

17 A. I don't know if I hit someone.

18

19 Q. Okay.

20

21 Q. Do you hope do you blame Home Depot for not giving you
22 another receiving associate to help you with the with
23 the amount of loads that was required?

24

25 A. I've never thought of it that way.

1

2 Q. I mean, you gotta move.

3

4 Q. You're saying to me you gotta move 20

5

6 Q. some odd windows

7

8 Q. at a single time so you can get your job done,
9 basically.

10

11 Q. Do do you think that's

12

13 Q. the safest way

14

15 Q. to operate? --

16

17 ::

18 : Objection. Calls for speculation.

19

20 ::

21 : Unfair characterization.

22

23 A. I was shown a methodology to clear receiving in order to
24 prepare for

25

1 A. the replenishment truck.

2

3 A. And that was one of the protocols that I was taught.

4

5 Q. Let

6

7 Q. me ask you this, would you ever drive a car

8

9 Q. without

10

11 Q. seeing what's directly in front of you? --

12

13 ::

14 : Objection,

15

16 ::

17 : calls for speculation,

18

19 ::

20 : and fair characterization.

21

22 A. Most likely not.

23

24 Q. Okay. And why is that?

25

1 Q. Because you can't see directly in front of you, right?

2 And it's dangerous.

3

4 A. Well, you're driving a vehicle that's under its own
5 power.

6

7 Q. Right. But your view is being blocked

8

9 Q. from what is directly in front of you. Right? So there's
10 gonna be a blind spot of what you can see. Can you at
11 least agree with that? --

12

13 ::

14 : Objection.

15

16 ::

17 : Improper hypothetical.

18

19 A. I can agree with a car driving a car blind

20

21 A. is not the most likely scenario.

22

23 Q. Okay. And so would you agree with me when you're

24

25 Q. when you have

1

2 Q. the windows in front of you

3

4 Q. okay. Let me let me strike that. So would you agree with
5 me that you you had a blind spot

6

7 Q. right beyond the windows whenever you were transferring
8 the windows from

9

10 Q. point a to point b at the time of the incident? --

11

12 ::

13 : Objection, being ambiguous.

14

15 A. -- I was moving the windows in the appropriate manner
16 that I was taught. I was looking down both sides,

17

18 Q. I didn't see anybody in front of me. My question's a
19 little bit different. So that you can agree with me and
20 I'm gonna object you to non responsive. You can agree
21 with me that there is an area

22

23 Q. a little bit beyond

24

25 Q. where the windows are

1

2 Q. called the blind spot that you could not see because the
3 windows were directly in front of you.

4

5 A. I don't know.

6

7 Q. Those are my questions. I'll pass the witness.

8

9 ::

10 : We'll reserve.

11

12 Q. Hello?

13

14 ::

15 : We'll reserve.

16

17 Q. Okay.

18

19 THE REPORTER::

20 THE REPORTER: Then before we go off the record, miss San,
21 would you like a copy?

22

23 ::

24 : I will have an etran, please. Okay.

25

1 THE REPORTER::

2 THE REPORTER: Alright. The time is 03:52PM,

3

4 THE REPORTER::

5 THE REPORTER: and we are off the record.

6

7 Q. And, mister Nunez, I I put my email in the chat

8

9 Q. as well as, Mia, if you could send us the exhibits to
10 both emails, please. Of course. Okay.

11

12 ::

13 : And of course, a read and sign for Mr. Thomas. Yes, ma'am.

14 Okay.

15

16 THE REPORTER::

17 THE REPORTER: Thank you. Okay.

18

19 THE REPORTER::

20 THE REPORTER: Alright. Well, thank you all. Well, thank you.

21 Thank you very much. Spellings for mister Thomas then? No.

22 Not really. I think I'd I don't think I had any spellings.

23

24 ::

25 : Okay. Great. Okay.

1

2 ::

3 : Thank you all. Thank you. Thank you, Heath. You can you're
4 you're free to go. Thank you. Yes, ma'am. K. Thank

5

6 Q. you. I'll I'll send you the audio for this one probably
7 tomorrow. Okay. Thank you. Unless they get me on too
8 long depots, then I might get it to you Monday. Okay. No
9 problem. Thank you.

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24

25